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[00:08:49] The House will come to order. Members, please take your seats. Sergeant Orms. The House is now in session. All persons not entitled to the privileges of the floor, please retire to the gallery.

[00:09:07] The members will rise and be led in prayer by Reverend Bert Cloud, Senior Pastor, Thurling United Methodist Church, Thurling, and remain standing for the Pledge of Allegiance to the Flag of the United States of America, which will be led by the Delegate from Alexandria, Delegate Herring.

[00:09:23] As you are so inclined, please join with me in prayer. - Holy and merciful one, we thank you for the gift of our homes and our communities, and we thank you for how you woke us from our sleep this day and called us to this place and this moment to serve.

[00:09:47] We pray for all who are part of this work, from delegates and pages, aides, staff, clerks, Capitol Police officers, and facility staff, and food service workers, analysts, reporters, lobbyists constituents families and guides help each of us to live into the plan and the purpose that you have dreamed for our lives and for this moment help us to be wise and moral creative and

[00:10:19] bold merciful and just fill each of our legislators and leaders with an expansive compelling spirit of both justice and compassion for the diverse unique people of our commonwealth and our world and forgive us and guide us when we fail you and fail each other thank you for this moment

[00:10:48] and the opportunity today to do what is well and good and it is in your hope that we pray amen

[00:11:00] amen the members will answer the roll call by indicating their presence on the electronic voting

[00:11:37] Board. Clerk will close the row. Mr. Speaker, a quorum is present. Pursuant to House Rule 3, I've examined and approved the journal of the House of Delegates for February 11th, 2025.

[00:11:58] Motions and resolutions under Rule 39 pursuant to the provisions of Rule 40 are now in order. Does the clerk have any announcements or communications? No announcements or communications, therefore, pursuant to House Rule 40. In this first portion of this morning, our speaker request that you use your request to speak button to get into the queue for the agenda items as for reference up on the voting board. Delegate from Loudoun County, Delegate Reeser. Good morning, Good afternoon, Mr. Speaker. Thank you. I rise for an introduction.

[00:12:23] Don't ask the floor. Thank you, Mr. Speaker. It is an honor and a joy to introduce Reverend Burke Cloud, the pastor of Sterling United Methodist Church, who is joined today by his wife, Reverend Gina Anderson Cloud, pastor of Florist United Methodist Church. Reverend Cloud is a native of Virginia and comes from a family of educators.

[00:12:43] Reverend Cloud has spent more than three decades serving others, first as a school psychologist and for the past 20 years as a United Methodist pastor. Throughout his time in ministry, Reverend Cloud has mentored and trained clergy, developed and led congregational ministries, and supported individuals discerning their call to ministry.

[00:13:05] His work reflects a deep commitment to teaching, spiritual formation, and service. During my time as a delegate, I've had many opportunities to visit houses of worship, Mr. Speaker, and Sterling United Methodist Church has an extra special way of making me feel welcome and appreciated, which is a clear reflection of Reverend Cloud's thoughtful and compassionate leadership. Mr. Speaker and members of the House, please join me in welcoming Reverend Cloud and his

[00:13:30] wife. Welcome, welcome to the Capitol and thank you for that wonderful prayer this morning. Delegate from Spotsylvania, Delegate Scott. Thank you, Mr. Speaker. I rise for an introduction. Delegate has the floor. Mr. Speaker, today and members of the House of Delegates, today I rise to introduce and welcome several outstanding international high school students participating in the Academic Year in America program. If they will please rise, they are joining us in the gallery.

[00:14:07] Academic Year in America brings students ages 15 to 18 from around the world to live with volunteer host families and attend Virginia high schools for a full academic year. These young people immerse themselves in American life while serving as junior ambassadors for their home countries, fostering mutual understanding and positive cultural exchange. Among them this year are three remarkable young people, a young man from the Arab region of Israel, a young man from Armenia, and a young lady from Germany. On behalf of these students, I ask that we extend our sincere

[00:14:45] thanks to the schools, the host families, coordinators, and the communities for welcoming them and providing this transformative opportunity. I am proud they are here with us today, and I ask that we give them a warm house welcome. Welcome. Welcome to the Capitol today. The delegate from

[00:15:10] Richmond City, Delegate Carr. Delegate from Richmond City, Delegate Carr. Thank you, Mr. Speaker. I rise for an introduction. Delegate has the floor. Thank you, Mr. Speaker. Thank you to joining us today in the gallery are students from St. Michael's Episcopal School, and I'd ask them to please stand. At St. Michael's, children enter a community that believes childhood is sacred, a time to be deeply known, lovingly guided, and shaped with care. Each child is seen not only for their abilities, but for their whole self, their spirit, their

[00:15:49] potential, and unique way of moving through the world. St. Michael's also actively instills the values of kindness, respect, acceptance, integrity, responsibility, resilience, and compassion. Located on a unique 70-acre campus in Richmond, Virginia, St. Michael's K-8 co-educational community is small enough, 400 students and 60-plus faculty and staff, for everyone to know one another yet large enough to provide rich curricular and co-curricular opportunities

[00:16:24] their student teacher ratio is 10 to 1 and the average class size is 18 to 19 students students hail from 27 different zip codes st michael's is accredited by the virginia association of independent schools vais and is a member of the national association of independent schools I hope you'll join me in giving them a warm welcome today.

[00:16:49] Welcome. Welcome to the Capitol today. The delegate from Chesapeake, delegate Lefwich. Thank you, Mr. Speaker. I rise for an announcement. The delegate has the floor. Mr. Speaker, I'd like to announce to the body that I did get my cake.

[00:17:07] And I thought for once I would be able to get my cake and eat it too. But given it's my seatmate's birthday and in the best interest of my budget amendments, I thought I'd present this to him today. He's absent. You might think he's not here because he's bashful and doesn't like attention, but given his age, I think he's just making his 13th trip to the bathroom.

[00:17:31] Thank you, Mr. Speaker. On that note, the delegate from Fredericksburg, delegate call. Thank you, Mr. Speaker. I rise for the purpose of an introduction.

[00:17:46] Delegate has the floor. Thank you, Mr. Speaker. Joining us in the gallery today, we have members of the James Solomon Russell St. Paul's College Museum and Archives, and if they are there, I would ask them to please rise. The mission of the James Solomon Russell St. Paul's College Museum and Archives is to collect, organize, preserve, and promote access to its collection of archival records, books, printed materials, photographs, artifacts, and other items pertaining to the life of James Solomon Russell and the history of James Solomon Russell High School and St. Paul's College for use by researchers, students, professionals, alumni, and the general public.

[00:18:22] I also want to thank you, Mr. Speaker, for giving me leave to introduce Malcolm Mitchell, who is also with them today. Malcolm Mitchell is a Super Bowl champion, winning with the New England Patriots, author of The Magician's Hat, and founder of the Share the Magic Foundation. Through his Read with Malcolm program, he has led literacy rallies and reading initiatives benefiting students all across our great Commonwealth.

[00:18:45] I join with the gentleman, Delegate Wachsman, in asking that the body give them a warm house welcome.

[00:19:00] Welcome. Welcome to the Capitol today. The delegate from Virginia Beach, Delegate Tater. Thank you, Mr. Speaker. I rise for the introduction. The delegate has the floor. Thank you, Mr. Speaker.

Today, I have the distinct privilege of introducing the Virginia Horse Council, an organization built by horsemen for horsemen, and I'd like to ask them to stand.

[00:19:23] For years, the council has been a vital advocate for the Commonwealth's equine industry, equine. It monitors the legislative issues that matter most to our riders and breeders and serves as a crucial bridge between our local agricultural communities and state and federal agencies.

[00:19:41] But beyond the policy and the economic impact, the Virginia Horse Council is near and dear to my heart. My family has many wonderful memories of the annual Legislative Family Weekend. First, some of you may remember it as the Legislative Trail Ride.

[00:19:57] Those who remember the LTR may recall my father-in-law, Coach Tata, who served in the General Assembly for 30 years. When my children were young, the coach would invite my family to join Virginia legislators for this weekend. Just this past year, you can imagine my thrill at being able to bring my children and now grandchildren to continue the tradition.

[00:20:19] It's a testament to the community they have built. By the way, the 2026 Virginia Horse Council Legislative Family Weekend will be held June 13th and 14th of this year, and I encourage all of you to sign up and bring your family.

[00:20:35] I can assure you of an amazing time, and you will appreciate how and why these wonderful horsemen and women are the perfect people to expand the equine industry in the Commonwealth. Mr. Speaker, I ask that this body join me in giving the members of the Virginia Horse Council a warm welcome. Welcome, welcome to the Capitol today. Delegate from Fairfax, Delegate Boulevard. Thank you, Mr.

[00:21:06] Speaker. I rise for the purpose of an introduction. The delegate has the floor. As a fellow museum professional, it is my pleasure to welcome members of the Virginia Museum community who have come to visit the General Assembly today, would you all please stand? Virginia has more than 1,000 museums, galleries, and cultural sites that account for more than 28,000 jobs across the Commonwealth. Museums have a $1.8 billion financial impact on Virginia's economy. Our museums and humanities programs are not only the stewards of that history, but the cornerstone of a vibrant tourism economy.

[00:21:45] The typical museum spends 75% of their education budget directly on K-12 students, with 1.6 million school-age children visiting our museums annually. As our nation commemorates its 250th anniversary, our many museums and historic sites across the Commonwealth have opened new exhibitions, created diverse and inspiring public programs, and are actively telling the full history of all Virginians and their contributions to our nation.

[00:22:17] We are very excited that this year's Virginia Association of Museums Conference will be held in historic Colonial Williamsburg from March 14th to 17th, where we are not only commemorating the anniversary of the nation, but also the 100th anniversary of the founding of the Colonial Williamsburg Foundation.

[00:22:36] I'm pleased to also introduce our VAM president today, Karen Daly, executive director of Stratford Hall. And note that our own delegate, Betsy Carr, is also an active board member. I hope that you will join tonight's reception for Museum Day at the Library of Virginia from 5 to 7.

[00:22:57] And please help me welcome members of the Virginia Association of Museums to the house today. Thank you. Welcome, welcome to the Capitol today.

[00:23:16] Delegate from Bedford, Delegate Griffin. Mr. Speaker, I rise for an introduction. Delegate has the floor. Mr. Speaker, today we are joined by the School Board Member Alliance, if they would please stand. The School Board Member Alliance empowers bold leaders who are shaping the future of education in Virginia through comprehensive resources and professional development.

[00:23:37] We provide the knowledge and skills needed to drive student success, strengthen school board governance, and influence impactful educational policy. The President, Shelley Norton, with a lot of their board members are here today. We're so thankful for the work they do in this fight. So thank you, and please welcome them to the Capitol, Mr. Speaker. Welcome. Welcome to the Capitol today. The delegate from Virginia Beach, Delegate Fagans.

[00:24:06] Mr. Speaker, I rise for a motion. The delegate has the floor. Mr. Speaker, I move that when the House adjourns today, it adjourns in the honor and memory of Coach John W. Parker, Sr. I'd like to speak to that motion. Delegate has the floor. Today, on behalf of Delegate Fowler, Converse Fowler, Delegate Askew, and Tallwood Lions all around the world, I'd like to acknowledge a man who had a profound impact on my life as a scholar and as an athlete.

[00:24:35] Virginia Beach Tallwood High School coach John Parker Sr., who passed away last week. This is a little hard because I was just at Tallwood last month getting ready with Coach Parker, getting ready to get his 32-year retirement ceremony going on as we were planning to go to A.J. Gators to celebrate with so many of them.

[00:24:57] Coach Parker was a proud native of Virginia Beach and a graduate of First Colonial High School, where he became a standout track and field athlete setting multiple Virginia records and sprint and relay app events he continued his athletic career at Norfolk State University and earned an invitation to actually try out for the US Olympic team although an injury prevented him from competing internationally he chose another path of service enlisting in the United States Army and serving our nation for 11 years following his military service coach Parker began a remarkable 32 year career as an advocate for student

[00:25:34] achievement at Tallwood High School and other schools in Virginia Beach. He initially joined Tallwood as a security guard, but so many of us knew him more than just a security guard. And fate would soon rekindle his love for track and field, and he joined as a coach. Part of the reason that I'm standing for you today in this chamber is because of his mentorship. His mentorship on the track, his mentorship in the school, the way he would look at you when you came into the door. Coach Parker was one of the first people that you saw when you entered Tallwood. His

[00:26:12] influence continues to shape not just my life, but so many others in Virginia Beach, from one veteran to another, from one athlete to another, from one Norfolk State Spartan to another. Thank you, Coach Parker, for what you did for my life and so many others. T-A-L-L-W-O-O-D, Tallwood for Life. The delegate from Virginia Beach, Delegate Fagans, moved that when the House adjourns today, they do so in the honor and memory of Coach John W. Parker, Sr. All those in favor of the motion

[00:26:46] shall rise. The motion is agreed to. Delegate from Lynchburg, Delegate Walker. Thank you, Mr.

[00:27:10] Speaker. I rise for an introduction. Delegate has the floor. Mr. Speaker, joining us in the gallery today are PA students and faculty members from the University of Lynchburg. I ask if they stand to be recognized. The University of Lynchburg PA program is nationally ranked. Graduates, nearly every student who starts in 2024 passed the national certification exam on their first try.

[00:27:36] So the Commonwealth is in very good hands with this group. They were in committee meetings this morning and watching to see how we pass legislation, and certainly legislation that will benefit them in the future. We appreciate them being here in the Capitol today and hope that none of us need their services.

[00:27:56] But, Mr. Speaker, we will be in good hands one day. So with that, I ask that you please join me in giving these great folks a warm house welcome.

[00:28:14] Welcome. Welcome to the Capitol today. The Delegate from Norfolk, Delegate Glass. Gratitude, Mr. Chair. I mean, Mr. Speaker, I rise for an introduction. The Delegate has the floor. An announcement, Mr. Speaker. Mr. Speaker, the Virginia Cattle and Dairy Industries are today's featured, proud sponsor of lunch for the members of the Virginia General Assembly.

[00:28:37] As two of the largest sectors in Virginia agriculture, the Virginia Cattlemen Association and the Virginia State Dairymen Association collectively represent industries employing 50,000 people. These roles range from working on farms to the 1.3 million cattle and the numerous value-added businesses in the dairy and breed products.

[00:29:00] Today's lunch features products such as Virginia farms processed by Virginia businesses and to include steaks, source Virginia verified, and that's a shout out to the delegate from Falkir, Virginia Verified Beef Producers Process in the Shenandoah Valley, milk supplied by Mayola, local dairies, and farm owners cooperatives, headquartered in Hendon with processing facilities in Newport News and Strattsburg.

[00:29:28] The milk Mayola provided is produced by dairy farmers across the Commonwealth. Also, our potato chips, the Route 11, are from Route 11 in Mount Jackson, just past the AFID grant recipient. These chips are made from potatoes grown on the Virginia's eastern shore, distributed through the Valley Pike Market in Weyer's Cave.

[00:29:53] Together, Mr. Speaker, the Virginia beef and dairy industries contribute more than $14 million billion with a B to the Commonwealth's economic job through job creation, support of local businesses, exports, productive land use.

[00:30:11] Our producers are vital contributors to a strong economy, food security, and a healthy environment. They thank the members of the General Assembly for their daily service to the citizens of the Commonwealth. Thank you, Mr. Speaker.

[00:30:27] Mr. Speaker. Delegate from Rockingham, Delegate Will. Mr. Speaker, will the delegate yield for a question? Will the delegate yield in the first morning hour for a question? Is that a thing, Mr. Speaker? It has become, it has become a thing.

[00:30:45] Okay. Mr. Speaker, I yield. The delegate will yield. Mr. Speaker, I'd ask the delegate so we can be rest assured that what we enjoyed today was the real thing. It was real beef. Mr. Speaker, I would answer the delegate by saying, that's real beef.

[00:31:04] The delegate from Falkhead, Delegate Webber, wave in. Thank you, Mr. Speaker. Mr. Speaker, I just would like to verify that it is real beef as we produce some of it. Thank you, Mr. Speaker. Okay, so this is your beef that we were eating.

[00:31:23] Now we know how they're going to get rid of us. All right. The delegate from Alexandria, oh, you ate something too, okay. The delegate from Alexandria, Delegate McGuire. Thank you, Mr. Speaker. I rise for an announcement and then also a motion. The delegate has the floor.

[00:31:39] Thank you, Mr. Speaker. While I do not have any cake over here, I did get a piece of pie from the back room because I am celebrating my seatmate, Delegate Converse Fowler's birthday today as well. She specifically asked me not to do this, so I want to apologize, but she deserves a happy birthday on her birthday.

[00:32:03] Mr. Speaker, also rising for a motion. The delegate has the floor. Mr. Speaker, on behalf of Delegate Franklin and Delegate Ballard, I would like to move that when we adjourn today, we do so in the honor and memory of Wes Worsham, and I'd like to speak to that motion. The delegate has the floor.

[00:32:19] Mr. Speaker, Hokie Nation and the Commonwealth lost an amazing person this week. We gather today with heavy hearts to mourn the passing and celebrate the extraordinary life of Wes Worsham, who passed away on Tuesday at the age of 93. If you've been to Blacksburg and enjoyed the excitement of Lane Stadium, you may have missed that when the team runs out of the tunnel to enter Sandman, they are running onto Worsham Field, a field that Mr. Worsham's name has graced at Lane Stadium for several decades.

[00:32:50] It is a permanent tribute to the immense generosity and unwavering passion he and his wife, Janet, showed toward the university and its student-athletes. In 1992, following a major gift to the athletics program, the field was named in his honor. Wes was, simply put, one of the program's most loyal supporters, backing his enthusiasm with lasting, transformative contributions.

[00:33:14] A native of Virginia's Northern Neck, Wes was a successful businessman, building a thriving company that served clients throughout the region. That professional success allowed him to give generously to the causes he cared about most, including our beloved Virginia Tech. Though he never attended Virginia Tech himself, he developed a deep and lasting connection to the Hokies, becoming one of the most devoted followers and fans the program has known.

[00:33:39] His love of Virginia Tech started while serving our country during the Korean War. This experience, the sheer resilience and character, reflected the man he was throughout his entire life. Mr. Worsham was captured and held as a prisoner of war for over three months during the war, resulting in his parents being told that he had been killed in action.

[00:33:58] He was liberated by the Turkish army and an American tank column, and after a month-long boat ride home, he arrived in San Francisco, immediately putting in a collect call to his parents' house at 2 a.m. Upon hearing his voice, his mom fainted. His dad got up to see what all the racket was about.

[00:34:16] Wes said, Dad, it's me, to which his dad replied, I think your mama has fainted. Wortham's injuries necessitated a nine-month stay at Walter Reed Army Medical Center. He healed and eventually entered life as a civilian, getting into the fire protection business and founding his first business, Worsham Sprinklers, in 1964.

[00:34:36] Once in civilian life, Mr. Worsham began reaching out to fellow Virginians he had served with during the war. One of those individuals was Arthur Fleet, a Blacksburg native who fought with Worsham during the Korean War. Fleet is the reason Worsham discovered Virginia Tech, and as fate would have it, they were both born on August 10th.

[00:34:55] Mr. Fleet unfortunately passed away in 1964, but for years since his passing, Mr. Worsham would sit at Mr. Fleet's grave on August 10th, celebrating and honoring his friend and their friendship. For decades, Wes was a familiar and beloved presence around the football program.

[00:35:13] You knew he was there in his distinctive game day attire, the maroon Virginia Tech hat and blazer, the Hokies-themed tie, and custom khaki pants embroidered with Hokie birds. He was one of the most recognizable figures on the sidelines, whether at Lane Stadium on Worsham Field or on the road across the country.

[00:35:30] His support was not just transactional. It was rooted in deep loyalty and deep personal relationships. He forged close bonds with multiple Virginia Tech coaches, including Bill Dooley and Frank Beamer. He was a constant presence, traveling with the team, spending time on the sideline, and hosting family and friends at games for many years.

[00:35:48] Though his name will forever be part of one of college football's most recognizable and iconic venues, Wes Worsham's legacy extends far beyond the playing surface. For decades, he embodied the loyalty, the generosity, and the passion that truly defines Hokie Nation. I had the pleasure of interacting with Mr. Worsham on several occasions, and to say he was a kind, humble person would be an understatement.

[00:36:10] He treated everyone with respect and embodied Virginia Tech's motto of up prosum, that I might serve. Thank you, Mr. Speaker. The delegate from Arlington, delegate Fairfax, same thing. Delegates from Fairfax move that when the House adjourned today, do so in the honor and memory of Wes Worsham.

[00:36:30] All those in favor shall please rise. The motion is agreed to. Delegate from Spotsylvania, Delegate Cole. Mr. Speaker, I rise for a motion.

[00:36:47] The delegate has the floor. Mr. Speaker, I move that the House take up out of order H.R. 106 on page 94 of today's calendar. Clerk will report a resolution. House resolution number 106 commemorating the life and legacy of Mildred Dolores Jeter Loving.

[00:37:06] Mr. Speaker, I move for the passage of the resolution. Shall the House adopt House resolution number 106? All those in favor say aye. All those opposed, no. The resolution is adopted. Thank you. Sued to House Rule 30, the journal shall reflect that the following members are away on pressing personal business and are granted leave from today's session, Delegates Knight and Williams.

[00:37:32] The clerk shall announce the next order of business. Mr. Speaker, members of the House, second portion of the morning hour reserve announcement of member requests for legislation moved from the uncontested to a regular calendar. There is one, page one, first category, House Bill's third reading, uncontested delegate reads House Bill 49, out of the block, over to the regular calendar at the request of Delegate Wright.

[00:37:53] That's the only one I'm aware of, sir. The third portion of the morning hour is reserved for the announcements of member requests for legislation to go by for the day. If such, the motion by the Majority Leader to effectuate that, I'm aware of three. On page nine of today's calendar, the second category, live category, House Bill's third reading, Delegate Downey's House Bill 841, by for the day.

[00:38:18] Over on page 31, in the category of second regular, Delegate McClure's House Bill 524, bye for the day. And on the same category, but up ahead to page 41, Delegate Hayes's House Bill 797.

[00:38:34] That is bye for the day, and the last three are at the request of Delegate Tran. Delegate from Alexandria, Delegate Herring. Mr. Speaker, I move that the legislation, as announced by the clerk, go bye for the day. Delegate from Alexandria, Delegate Herring moves that the legislation, as announced by the clerk, go bye for the day. As many in favor, the motion will say aye.

[00:38:50] Those opposed, no. The motion is agreed to. The clerk will announce the next article. And, Mr. Speaker, the fourth and final portion of the morning hour is reserved for members' requests for points of personal privilege. Kindly use your request to tweet the button. The Delegate from Buckingham, Delegate Garrett. Thank you, Mr. Speaker. I rise on the point of personal privilege.

[00:39:06] Delegate has the floor. Mr. Speaker, in probably half an hour, we're going to vote on House Bill 88, which addresses invasive species, Mr. Speaker. Invasive species. It seeks to make them illegal.

[00:39:22] seeks to vanquish them and deport them from our land. But I ask every member of this chamber to ask themselves a rhetorical question. Can any species be invasive on stolen land? Who are we to say which species are invasive? Are we not invasive? Do we seek to ban English ivy because we don't like England? If we want to eradicate lanternflies, is that anti-Chinese?

[00:39:52] Mr. Speaker, our diversity is our strength. Brazil nuts come from Brazil. I love them. Peanuts from Peru, potatoes from Bolivia, tomatoes from Peru, bok choy, lotus root, Asia, yams, eggplant, black-eyed peas, Africa, broccoli, cabbage, yuck.

[00:40:09] Kale, turnips, Europe. No, just kidding. This is a great bill. This is a great bill. It makes perfect sense. Our diversity can be a great strength, but we have the first responsibility to present Americans to create and enforce laws that benefit Americans.

[00:40:25] It's a great bill because we have to combat invasive species as they hurt Americans. We rightly pass laws like HB 88 to do this. I hope everyone will vote for it. Then we look at things and we decide which would be awesome to have.

[00:40:41] Brazil nuts, peanuts, potatoes, tomatoes, heck yeah. Cabbage, meh. Landrum flies, zebra mussels, heck no. English ivy, stop anti-English hate. You know what bills really are ridiculous? HB 1441.

[00:40:58] HB 1482. HB 650. HB 1264. HB 1265. HB 1438. HB 1440. HB 1442. What do these bills do? Oh, gee, I'm glad you asked. They do things like ban ICE from polling places. Why? You guys super double pinky promised us that no one illegal ever votes.

[00:41:19] They do things like ban ICE from our courthouses. Why? I mean, there are no such things as criminal illegal aliens. Why would we want to have ICE pick up people who could be in our courthouses? They ban my sheriffs from turning over criminals who have been adjudicated guilty of molesting children, of raping, and of murdering. They ban my sheriffs from picking them up and turning them over to ICE,

even if they freaking want to. If you hate ICE, your hate is misplaced. Look in the mirror. If you hate migrants, your hate is misplaced. Look in the mirror. You know who's to

[00:41:57] blame? Politicians. Politicians lie to win votes. Politicians, dare I say it out loud, on both sides of the aisle. We exploit migrants and migrant issues, and we lie to get votes. In a committee room this week. I said in addressing hepatitis B, the majority of hepatitis B victims in America weren't born here. And one of my colleagues said, I won't let Mr. Garrett's xenophobic hate stand.

[00:42:28] You're entitled to your own opinions, but not your own facts. Google hepatitis B profile in America. 60% of people, and that's not their fault. I'm not blaming them, but stop lying to win political points. What is ICE doing? They're enforcing existing laws. They're law enforcement. Politicians who attack the foot soldiers for the rule of law are the problem. Business degree from Longwood.

[00:42:55] Nursing degree from Radford. One of the neatest things I've ever been able to do in my life was go into Sudan against the objection of Donald J. Trump's administration and get out two men who spent two years in prison for their faith. Remember the travel ban that said you can't enter the United States, if you're from these seven countries, Sudan was one. And I got those guys out. And Joshua graduated the son of one of those men from Longwood three years ago with a degree in business. And a daughter will graduate this year from Radford with a nursing degree.

[00:43:27] And 10 years ago, those kids were in a refugee camp because their fathers wouldn't change their hearts at the point of a gun. I wish God would use me for stuff like that every day. And they don't look like me and they don't worship exactly like me, but they're human beings and God loves them just like he loves me and every single migrant. But criminal migrants, why are we protecting them? Our duty is to protect us, black, white, red, yellow. I love you, Mr. Speaker. I mean it because God made you and me both in his image. But Rahm Emanuel once famously said, never let a good crisis go to waste. He could have just said, exploit vulnerable human beings

[00:44:03] to harvest votes. He could have said that because that's what never let a good crisis go to waste means. So if I'm living in economic despair in a developing nation and I have children and I love them. And my wealthy neighbor to the north says, hey, we have opportunity here. Come on up. And I don't come. What does it say about me? So it's our fault. It is our fault because we invited them and then we exploited them for economic and political gain on both sides of the aisle. Shame

[00:44:35] on us. Stop blaming the tires if you won't shop for a new set. This has been historically and should be a federal issue. I'm in a state legislative body. These 10 or so bills made it a state issue. All the people who criticize ICE, and Washington, D.C. in particular, owe me one thing. They owe me, and they owe you, and they owe you, and they owe migrants one thing, a solution.

[00:45:07] It's time to stop fixing the blame and start fixing the problem. Politicians should propose changes to the law that they're willing to enforce, that they're willing to enforce, because rule of law matters. I said all that. I'll give you my plan. Line up, take a number, Come according to our laws and make this country better, because we know you can.

[00:45:28] You have so many times. People in this chamber have done that. Thank you. If you can't do that, I support people who enforce the laws that we have passed. And if we can't support people who enforce the laws that we have passed, we have a duty, if we're going to be honest, to pass new laws.

[00:45:50] Some people will lie to win elections. Mr. Speaker, I know you, and I think you're like me. I choose to do it differently. I choose to tell the truth. The delegate from Albemarle, Delegate Carlson.

[00:46:15] Thank you, Mr. Speaker. I rise for a point of personal privilege. The delegate has the floor. Switching the topic, I think. I keep hearing from my colleagues on the other side saying they want to protect babies. So today, Mr. Speaker, I'm struggling to understand their votes.

[00:46:36] Yesterday in committee, when a common sense bill to protect babies from abuse came before us, Republicans were silent, and then they voted no. You heard that part right. A bill to protect babies from abuse.

[00:46:52] Let's be clear about what this bill does. If you are a doctor, a nurse, a hospital administrator, and you suspect that a child is being abused, you report it as soon as you can. We heard testimony late last night about babies, nine of them, premature and sick, showing up with unexplained bone fractures.

[00:47:18] Did the hospital dial DSS or report it? Not for seven weeks, Mr. Speaker. Babies with broken bones. As someone who has personally handled abuse and neglect reports out of hospitals, who's looked at x-rays, who's listened to expert testimony about babies with horrific injuries, I can say without any hesitation, not an ounce, that that is a failure, an ultimate failure.

[00:47:45] When babies are injured, you speak up. And yesterday, nobody on that side spoke up. Without any questions, no debate, no bill suggestions or edits, my Republican colleagues voted no.

[00:48:03] No big speeches, just silence. This bill creates accountability when people entrusted with children hurt them. It's not politics. It's protecting kids. And so, Mr. Speaker, we hear the speeches all the time, and I didn't really want to make them, but I'm hoping that maybe this will mean a different outcome for that bill.

[00:48:25] Actually, we've got the vote, so I know we're going to protect the kids. How can the other side of the aisle continue to claim that they are protecting and defending life, but refuse to speak or act when living, breathing babies are hurt? That's all, Mr. Speaker.

[00:48:41] Thank you. The delegate from Prince William, Delegate Franken. Mr. Speaker, I rise for the point of personal privilege.

[00:48:58] The delegate has the floor. Thank you, Mr. Speaker. Mr. Speaker, in honor of Black History Month, I rise today to recognize and celebrate the extraordinary legacy of the Fitzgerald family in Prince William County, Virginia. Roger Fitzgerald, Fannie Fitzgerald, Benita Fitzgerald-Mosley, and Kim Fitzgerald-Lennon.

[00:49:18] This is a family that embodies excellence, courage, service, and pride. Not in words alone, but in action. Fannie Fitzgerald was born in Amelia County, Virginia, and attended Virginia Union University alongside her husband, Roger Fitzgerald, beginning in 1952.

[00:49:37] They both devoted their entire careers to educating the children of the Commonwealth by serving as teachers in their community. Fannie Fitzgerald's first assignment was as head teacher of a two-room schoolhouse in Amelia County, a school with no cafeteria, no indoor plumbing, no central heating.

[00:49:55] yet even in those conditions she taught with dignity and determination. Fannie Fitzgerald later moved to the city of Manassas and in 1964 answered a historic call. Appointed by the Prince William County School Board, she transferred from the then segregated Antioch McCray School to Fred Lynn

Elementary and Middle School, integrating Prince William County Public Schools during a pivotal moment in our Commonwealth's history. Because of her courage and impact, the The Prince William County School Board voted unanimously to name an elementary school in

[00:50:30] her honor, the Fannie W. Fitzgerald Elementary School, ensuring that generations of students will learn in a building bearing her name. But Mr. Speaker, the legacy of excellence does not end there. That very school sits on Bonita Fitzgerald Drive, named for her eldest daughter, Olympic gold medalist Bonita Fitzgerald Mosley.

[00:50:52] An eight-time national champion and 14-time NCAA All-American at the University of Tennessee, Bonita made history at the 1984 Los Angeles Olympic Games when she won the gold medal in the 100-meter hurdles, becoming the first black woman to win gold in that event.

[00:51:10] In 1996, she was selected as one of eight U.S. Olympians to carry the Olympic flag at the Centennial Games in Atlanta. achievements have earned her induction to multiple halls of fame and in the Commonwealth and beyond. In continuing this powerful legacy of service, Kim Fitzgerald Lennon, daughter of Fannie Fitzgerald and sister of Benita Fitzgerald, has dedicated more than 30 years to education, much of that time teaching at the Fannie Fitzgerald Elementary School, honoring her mother's name not only on the building but through her own daily service to children. Mr. Speaker, the Fitzgerald family represents the very best of

[00:51:49] Virginia. Resilience in the face of injustice, excellence in the pursuit of opportunity, and unwavering commitment to public service. In Prince William County, the city of Manassas and Manassas Park, we are proud to call them our own. Thank you, Mr. Speaker, and thank you to my colleagues.

[00:52:07] The delegate from Spotsylvania, Delegate Cole.

[00:52:24] Thank you, Mr. Speaker. Mr. Speaker, I rise for a point of personal privilege. The delegate has the floor. you, Mr. Speaker. Mr. Speaker, I also rise in honor of black history, as well as today, February 12th, the anniversary of many court appearances in a multi-year battle. I speak in honor of the life and legacy of Miss Mildred Dolores Jeter Loving. While the story of Loving versus Virginia has been immortalized in books, movies, documentaries, songs, and even an opera, Mildred Loving.

[00:53:01] The House is at ease.

[00:54:22] The House will come to order. Delegate from Alexandria, Delegate Herring. Mr. Speaker, I move that the House stand in recess until 1 o'clock. Delegate from Alexandria, Delegate Herring moves that the House stand in recess until 1 p.m.

[00:54:38] All those in favor say aye. Those opposed, no.

[00:54:41] The House is in recess until 1 p.m.

[01:01:02] House will come to order.

[01:03:45] Delegate from Alexandria, Delegate Herring. Thank you, Mr. Speaker. Mr. Speaker, I move that the House stand in recess until 1.30. Delegate from Alexandria, Delegate Herring moves that the House stand in recess until 1.30. All those in favor say aye. All those opposed, no. The House is in recess until 1.30.

[01:17:57] House will come to order.

[01:38:56] Call a calendar. Calendar for today, Thursday, February 12th, day 30. The Virginia House of Delegates, there are about 90 pieces of legislation to be dispensed with today. Page 1, first category, House Bill's third reading, final passage, uncontested calendar.

[01:39:12] 17 bills in the block. House Bill 49 is out of the block, over to the regular calendar. Therefore, third reading, uncontested calendar block, consists of the following measures. House Bill 54, 88, 108, 140, 169, 354, 411, 500, as well as House Bill 529, 680, 772, 1114, 1299, 1300, 1322, 1463.

[01:39:37] And the last bill, third reading, uncontested counter block is House Bill 1477. That block is before you. Shall the bills pass? Clerk will close the roll.

[01:39:54] Ayes 98, noes 0. Ayes 98, noes 0. The bill passes. New category, House Bill's third reading, regular calendar, approximately 30 bills or so in this category. House Bill 841 is by for the day.

[01:40:09] Therefore, the first bill before you, third reading, regular, is House Bill 1161, relating to government data collection and dissemination practices, dissemination of personal information to federal government civil penalties. Shall the bill pass? Clerk will close the roll.

[01:40:28] Ayes 66, noes 32. Ayes 66, noes 32, the bill passes. Over on page 10, we come to House Bill 975, which relates to alcoholic beverage control, food-to-beverage ratio report. Shall the bill pass? Clerk will close the row.

[01:40:49] Ayes 87, no's 10. Ayes 87, no's 10. The bill passes. House Bill 19 relates to purchase, possession, or transportation of firearms, assault and battery of a family or household member or intimate partner penalties. Shall the bill pass?

[01:41:08] Clerk will close the row. Ayes 61, no's 35. Ayes 61, no's 35. The bill passes. House Bill 20 relates to minimum wage, farm laborers, or farm employees, temporary foreign workers.

[01:41:26] Shall the bill pass? Mr. Speaker. The delegate for file care, Delegate Webber. Mr. Speaker, speaking to the bill. Delegate has the floor. Thank you, Mr. Speaker. Mr. Speaker, while I respect the persistence of the patron on this issue, I must respectfully ask this body to vote no on HB 20.

[01:41:44] There are significant unintended consequences in the legislation before us. As President Dwight D. Eisenhower once wisely observed, farming looks mighty easy when your plow is a pencil and you're 1,000 miles from the cornfield. First, Mr. Speaker, we must consider the interaction with federal law.

[01:42:03] By removing the exemption for workers governed by 20 CFR Part 655, we may be creating compliance complexity and potential conflicts between state and federal requirements without actually putting more money in workers' pockets. When state law collides with an already detailed federal framework, it is not clarity we create.

[01:42:23] but confusion. Second, Mr. Speaker, we must consider the downstream effects. The culture of agriculture is different from many of the industries we debate in this chamber. Farming does not operate on a predictable clock-in-clock-out schedule. It follows the rhythms of weather, harvest windows, and calving seasons. Because of that reality, many small family operations compensate employees in ways unique to agriculture, most notably by providing housing. For many farm

[01:42:57] families, offering a home is not simply a perk. It is a practical solution that removes a worker's largest monthly expense. That flexibility allows small farms to remain viable while providing affordable

living arrangements for their employees. If we restrict that flexibility, we risk taking affordable housing off the table. And in many rural communities, that housing will not sit empty. Short-term rentals will replace employees. Mr. Speaker, when small farm labor

[01:43:32] costs increase, those costs do not disappear. They are either absorbed by farmers, many of whom cannot afford to do so, or passed on to customers through higher food prices. At a time when food affordability is already a concern for Virginia families, we should carefully weigh whether this bill may inadvertently harm the very communities it seeks to help. Mr. Speaker, the culture of agriculture is one of grit and perseverance, but even the strongest steel under enough pressure will break. I respectfully ask that this body, I have respectfully asked this body to consider

[01:44:10] those pressures and vote no on HB 20. Thank you, Mr. Speaker. Shall the bill pass? Clerk will close the roll. Ayes, 62, no's 35. Ayes, 62, no's 35. The bill passes. House Bill 35 relates to restorative

[01:44:38] housing and isolated confinement restrictions on use. Shall the bill pass? Clerk will close the roll. Ayes 66, noes 31.

[01:44:56] Ayes 66, noes 31. The bill passes. Over on page 12, can we continue third reading regular House Bill 41 relates to elections, administration, procedures for removal of electoral board members and general registrars. Shall the bill pass? Clerk will close the row.

[01:45:17] Ayes 72, ayes 73, noes 25. Ayes 73, noes 25. The bill passes. House Bill 212 relates to elections, election offenses, intimidation and threats toward election officials. Penalty. Shall the bill pass?

[01:45:38] Clerk will close the roll. Ayes, 62, noes 35. Ayes, 62, noes 35. The bill passed. House Bill 234 now before you relates to elections, general provisions, electoral board members to wear identification, civil penalty.

[01:45:55] Shall the bill pass? Clerk will close the roll. Ayes, 63, noes 35. Ayes, 63, noes 35.

[01:46:12] The bill passed. House Bill 549 relates to conservation and replacement of trees during development process. Work group report. Shall the bill pass? Clerk will close the roll.

[01:46:30] Ayes 64, noes 34. Ayes 64, noes 34. The bill passes. House Bill 639 relates to elections, administration acceptance of certain gifts and funding, approval required. Shall the bill pass? Clerk will close the roll.

[01:46:53] Ayes 63, noes 35. Ayes 63, noes 35. The bill passes. House Bill 650 relates to prohibiting certain acts in furtherance of federal immigration enforcement in certain protected areas, exceptions, penalties. Delegate from Rockingham, Delegate Will.

[01:47:09] Thank you, Mr. Speaker. speaking to the bill? Thank you, Mr. Speaker, ladies and gentlemen of the House. So we know the intent of the bill, and I won't belabor the fact, but what I'll tell you, I've got concerns about specific parts of this, especially, and Mr. Speaker, I'm concerned about the part in the bill that deals with our schools. And as we look at the language, what we're telling our schools uh that that they need to consider or or do because we've got k-12 and then a higher higher education um mr speaker i'm i'm afraid of the unintended consequences i'll just i'll be honest

[01:47:49] will it happen i don't know but are we willing to take that chance are we willing to create a situation where people that that are untrained unqualified in the heat of a potential moment are willing to

inject themselves into a situation i hope it never happens mr speaker but i would i I would respectfully ask the patron to take that into consideration going forward.

[01:48:14] There's going to be an opportunity to change and amend some of that language and take that into consideration of what the potential could really be. Thank you, Mr. Speaker. Shall the bill pass?

[01:48:40] Clerk will close the roll. Ayes 63, noes 35. Ayes 63, noes 35. The bill passes. Over on page 14, we come to House Bill 702, which would direct local law enforcement agencies to implement a firearm give-back program or a firearm buy-back program.

[01:48:57] Shall the bill pass? Clerk will close the roll. Ayes, 62, noes, 34, abstentions, 1.

[01:49:13] Ayes, 62, noes, 34, abstentions, 1, the bill passes. House Bill 774, related to elections, absentee, and provisional ballots, cure process. Shall the bill pass? Clerk will close the roll.

[01:49:36] Ayes, 62, noes, 35. Ayes, 62, noes, 35, the bill passes. House Bill 835 relates to elections. Candidates and elected officials address confidentiality. Shall the bill pass? Clerk will close the roll.

[01:50:00] Ayes 79, no's 19. Ayes 79, no's 19. The bill passes. House Bill 909 relates to elections administration. Shall the bill pass? Clerk will close the roll.

[01:50:22] Ayes 62, no's 35. Ayes 62, no's 35. The bill passes. House Bill 916 relates to concealed handgun permit. Demonstrated competence. Shall the bill pass? Clerk will close the roll.

[01:50:43] Ayes 81, noes 16. Ayes 81, noes 16. The bill passes. House Bill 932 relates to the General Assembly and members thereof, the legislative branch of government and legislative commissions, councils, committees, and other legislative entities.

[01:50:59] Shall the bill pass? Clerk will close the roll. Ayes 63, noes 35. Ayes 63, noes 35.

[01:51:15] The bill passes. House Bill 964 is a legislation that relates to voter registration, Restoration of political rights upon release from incarceration, certain adjudications. Shall the bill pass? Clerk will close the vote.

[01:51:38] Ayes 63, noes 34. Ayes 63, noes 34, the bill passes. House Bill 965, relates to the presidential electors and the agreement among the states to elect the president by national popular vote compact. Shall the bill pass?

[01:51:58] Clerk will close the vote. Ayes 61, noes 36. Ayes 61, noes 36, the bill passes. House Bill 967 relates to Elections Voting Rights Act of Virginia.

[01:52:16] Shall the bill pass? Clerk will close the row. Ayes 63, noes 35.

[01:52:32] Ayes 63, noes 35. The bill passes. Over on page 18, we come to House Bill 1040, which relates to the Virginia Commonwealth University Health System Authority Board of Directors Chief Executive Officer. Shall the bill pass? Clerk will close the row.

[01:52:56] Ayes 91, noes 5, abstentions 2. Ayes 91, Nose 5, Exemptions 2. The bill passes. House Bill 1096 relates to a substantial risk order reporting system established. Shall the bill pass?

[01:53:16] Clerk will close the roll. Ayes 63, Nose 35. Ayes 63, Nose 35. The bill passes. House Bill 1212 relates to a small lot residential zoning district.

[01:53:32] Delegate from Virginia Beach, Delegate Tater. Thank you, Mr. Speaker. I'd like to speak to the bill. The delegate has the floor. So, this bill overrides local zoning authority to mandate small-lot residential districts. Local communities understand their infrastructure, their schools, their roads, their character better than Richmond does.

[01:53:50] When the state mandates density without regard to local capacity, we create strain on utilities, classrooms, and traffic patterns. Housing supply absolutely matters, but top-down zoning mandates are not the right way to address it. Land use decisions belong as close to the people as possible.

[01:54:09] Thank you, Mr. Speaker. Shall the bill pass? Clerk will close the roll. Ayes 62, noes 35.

[01:54:27] Ayes 62, noes 35. The bill passes. House Bill 1234 relates to land development, solar canopies, and surface parking areas. Shall the bill pass? Clerk will close the roll.

[01:54:47] Ayes 76, noes 22. Ayes 76, noes 22. The bill passes. House Bill 1262 relates to notary's prohibition on certain advertising investigation by the Attorney General. Shall the bill pass? Clerk will close the row.

[01:55:11] Ayes 94, noes 3. Ayes 94, noes 3, the bill passes. But we're on page 20. We come to House Bill 1316, which relates to removal of clutter, agricultural use exceptions, exemptions, excuse me, Planning District 19.

[01:55:27] Shall the bill pass? Clerk will close the row. Ayes 80, noes 18. Ayes, 80, noes, 18. The bill passes.

[01:55:44] House Bill 1392 relates to powers and duties for operation of local and regional correctional facilities in courthouse security, turning access to courthouses and communication and visitation with incarcerated clients. Penalty. Shall the bill pass? Clerk will close the roll.

[01:56:07] Ayes, 83, noes, 14. Ayes, 83, noes, 14. The bill passes. House Bill 1441 relates to law enforcement agencies' agreements with federal authority for immigration enforcement requirements. Delegate from Orange County, Delegate Hamilton. Thank you, Mr. Speaker. Speaking to the bill, please.

[01:56:24] Delegate has the floor. Thank you, Mr. Speaker. If passed, this bill won't endanger Virginians. Mr. Speaker, it's worth giving context and noting how we got to this place of tug-of-war between the state and federal government on this issue of illegal immigration. Under the Biden administration, we saw upwards of 15 million illegal immigrants enter our country and overwhelm our systems from law enforcement to health care to education.

[01:56:48] During that same time, this General Assembly attempted to pass bills to subsidize health care for illegal immigrants, shield the immigration status of those facing felony convictions, and make illegal immigrants a protected class under the Human Rights Act and the Virginia Code.

[01:57:03] But for the grace of God, and for him using Governor Youngkin's veto pen, Virginia would already be postured as a sanctuary state, providing safe haven to an unknown amount of terrorists, murderers, and rapists who would freely roam in our commonwealth.

[01:57:19] Mr. Speaker, Virginians are a kind and generous people, and we welcome legal immigrants into our country, but Virginians are tired of seeing their loved ones harmed by those who shouldn't even be here, and they're tired of having to beg the justice system to do their job.

[01:57:37] This body should be using every tool at its disposal to facilitate in the peaceful removal of dangerous criminals from our communities. Mr. Speaker, Virginia should not sacrifice public safety for political ideology. I encourage this body to vote no on HB 1441.

[01:57:55] Thank you, Mr. Speaker. Shall the bill pass? Clerk will close the roll.

[01:58:17] Ayes, 61, noes, 35. Ayes, 61, noes, 35. The bill passes. House Bill 1476, now before you, relates to law enforcement civilian oversight bodies. Closed meetings, disclosure of certain law enforcement records. Shall the bill pass?

[01:58:46] Clerk will close the roll. Ayes 59. Noes 39. Ayes 59. Noes 39. The bill passes. House Bill 1482 relates to law enforcement officers' restrictions on wearing of facial coverings, required identification, civil liability, penalty. Shall the bill pass? Clerk will close the roll. Ayes 63. Noes 35. Ayes 63. Noes 35. The bill passes. House Bill 1492 relates to impersonating federal law enforcement officer penalties.

[01:59:25] Shall the bill pass? Clerk will close the roll. Ayes 62, noes 35.

[01:59:40] Ayes 62, noes 35. The bill passes. Over on page 22, House Bill 1525, now before you, a relation to possession or transportation of certain firearms by certain persons. Penalty. Shall the bill pass? Oh, I'm sorry. Take that, the delegate from Campbell County, Delegate Zier.

[01:59:59] Thank you, Mr. Speaker. Speaking to the bill. Delegate on the floor. Mr. Speaker, I sure am glad this law was not in effect at our founding because at that time in Virginia code it said that every 16-year-old male was required to have his own weapon and be ready to join the militia. If that had not been the case or if this bill had been the case at that time, we may not have a country. 18-year-olds through the ages have proven themselves responsible. They raise families, they purchase houses, they maintain businesses, some have even run countries. And Mr. Speaker, 18-year-olds continue by and large to prove

[02:00:33] themselves responsible. They buy houses, they manage their families and so on. This bill infringes upon their right, though they are able to use military-grade weaponry to defend us, it infringes on their right to buy the smallest of firearms to defend themselves and their families. Mr. Speaker,

[02:00:52] I urge a no on this one. Shall the bill pass? Clerk will close the row. Ayes 58, noes 37. 58, knows 37 the bill passes and returning to page one we pick up house bill page one we pick up house

[02:01:30] bill uh 49 last bill in this block which relates to paramutual wagering historical horse racing percentage retained for distribution shall the bill pass close the rope eyes uh 95 knows three eyes 95 knows three the bill passes mr speaker delegate from fairfax dr simon mr speaker having voted on the prevailing side by which we passed House Bill 1441. House Bill 1441, I move that we

[02:02:09] reconsider that vote so that a couple members can cast their votes. Delegate for Fairfax, Delegate Simon moves that having voted on the prevailing side by which we passed House Bill 1441 that we reconsider the vote so that a member may cast their vote. All those in favor say aye. Aye.

[02:02:26] All those opposed, no. The motion is agreed to. Madam Clerk, shall the bill pass? Clerk will close Ayes 63, noes 35.

[02:02:47] Ayes 63, noes 35. The bill passes. Continuing with the calendar, we come to a new category, House Bill's on second reading uncontested calendar. Approximately 15 bills in this category beginning on page 22, if you're falling away that way.

[02:03:03] Bill before you first is House Bill 66, which would direct the Department of Medical Assistance Services and the Department of Social Services to modernize the technological systems they use to administer medical assistance and social service programs. Legislation reported by the Committee on Health and Human Services, the substitute reported by the Committee on Appropriations.

[02:03:20] Delegate from Virginia Beach, Delegate Fagans. Mr. Speaker, I'd like to move the substitute. Shall the substitute be agreed to? All those in favor, say aye. All those opposed, no. Substitute is agreed to. Thank you, Mr. Speaker. House Bill 66 builds upon the findings of last year's Emergency Committee on Federal Workforce and Funding Reductions, which made clear that Virginia must modernize its aging medical IT systems.

[02:03:42] The Department of Medical Assistance Services and the Department of Social Services systems are already stretched thin, and with new federal requirements, they will only make these outdated systems even harder to manage. The bill directs the agencies to engage an independent vendor to develop a comprehensive modernization roadmap for the Virginia case management system and related benefits platforms.

[02:04:04] The goal is to begin the process of modernizing these systems so they are more responsive and better able to serve our constituents. Madam Speaker, I move that the bill be engrossed and advance to its third reading. Next up in the uncontested block is House Bill 195, which speaks to amend and reenact Section of Dakota-Virginia relating to programs for at-risk students, permissible uses of funding.

[02:04:23] Legislation originally reported for the Committee on Education with Amendments, subsequently reported by the Committee on Appropriations. The delegate from Richmond City, Delegate McQuinn. Thank you, Madam Speaker. Madam Speaker, I'd like to move the amendments. Shall the amendments be agreed to? All those in favor say aye.

[02:04:40] opposed no the amendments are agreed to delegate mcquinn thank you madam speaker madam speaker house bill 195 is a bill to amend and react react relating to the programs for at-risk students permissible use of funds and this bill is about recognizing the health and education goes hand in hand and if a child is unhealthy physically mentally they cannot learn registered nurse and can access students create care plans and coordinate cares with families and doctors They can review medical records, and they are really on the front line when a child is in crisis.

[02:05:15] So this bill would advance practice, register nurses with advanced degrees and school-based health centers to be established at the schools to help and support young people in their health crisis.

[02:05:32] And so I hope it would be the will of the body to engross the bill and move it on to its third reading. Next up in the block, House Bill 580 seeks to amend and reenact section of the Code of Virginia related to the Division of Consumer Counsel, duties, artificial intelligence, fraud, and abuse.

[02:05:48] Legislation originally reported on general law, subsequently reported by the Committee on Appropriations, which offered an aligned amendment. The Delegate from Norfolk, Delegate Glass. Gratitude matters, Speaker. I move the committee amendment. Shall the amendments be agreed to? All those in favor say aye. Those opposed, no. The amendments are agreed to. Delegate Glass.

[02:06:04] Gratitude, Madam Speaker. The bill requires the Office of the Attorney General Division of Consumer Counsel to establish and administer programs to address AI fraud and abuse, including a statewide artificial intelligence fraud and abuse alert system.

[02:06:22] because the Office of Attorney General does not have significant expertise in AI matters it would allow them to hire four additional personnel to handle complaints and possible enforcement and obligations resulting in an annual fiscal impact. I move that we engross the bill and pass it on to its third reading. Now before you is House Plus 643 which would require the Board of Education to make certain changes to its school performance and support framework. Legislation reporting committee on education with amendment nature or substitute? The delegate from Roanoke City, Delegate Russell. Thank you, Madam Speaker. Move the committee substitute. Shall the substitute be agreed to? All those in favor say aye. Aye. Those

[02:07:00] opposed, no. The substitute's agreed to. Delegate Russell. Thank you, Madam Speaker. House Bill 643 builds upon the work that JLARC did. A few months ago, they came out and said, here are some improvements that we really need to make to the brand new school performance framework to ensure that it's working well. So what this does is has some of those recommendations and going to the board to make some of those changes. Hope it be the will of the body to engross the bill and pass it on to his third reading. Top of page 25, House Bill 777. Is legislation to amend the Code of Virginia or Land of Virginia Public Procurement Act? Required procurement of goods transported by privately owned commercial vessels. Legislation originally reported to the Committee on General

[02:07:40] Laws. Amendment 8 substitutes. Substitute reported by the Committee on Appropriations. The delegate from Chesapeake, Delegate Hayes. Thank you, Madam Speaker. I move the committee amendments? Shall the substitute be agreed to? All those in favor say aye. Those opposed, no. Substitute's agreed to. Delegate Hayes. Thank you so much. The substitute will place the federal compliance for the Merchant Marine Act to be included in the contracts awarded by the state.

[02:08:06] The amendment removes the responsibility of the Commonwealth to enforce the act, which is the Maritime Administration's responsibility under the U.S. Department of transportation. The Merchant Marine Act requires that 50% of the cargo ship overseas of the federal portion of projects is shipped by the U.S. flag. I hope it's the will of the body to engross the bill and move it on to its third reading. Next up in the block, the uncontested calendar block is House Bill 794, legislation to amend the Code of Virginia relating to the Department of Health, reduction of opioid overdose and opioid overdose deaths report. Legislation was reported on Health

[02:08:44] Human Services with a substitute and then it was subsequently reported by a Committee on Appropriations with a different substitute. The Delegate from Wildin, Delegate Reeser. Thank you, Madam Speaker. Madam Speaker, I move the Committee substitute and ask the House vote no on the motion. Shall the substitute be agreed to?

[02:09:00] The Health Committee substitute. Shall the Health Committee substitute be agreed to? All those in favor say aye. Those opposed, no. No. Substitutes rejected. Delegate Reeser.

[02:09:18] Thank you. I now move the adoption of the Appropriations Committee substitute and request the members vote yes. Shall the Appropriations substitute be agreed to? All those in favor say aye. Aye. Those opposed, no. The Appropriations substitute is adopted. Delegate Reeser.

[02:09:34] Thank you, Madam Speaker. This bill directs the Virginia Department of Health to lead a statewide strategic plan to coordinate efforts addressing opioid overdoses and overdose deaths. I move the bill be engrossed and pass to its third read. Continuing with the block, we come now to House Bill 795.

[02:09:52] Different bills, same patron. This legislation seeks to amend and reenact the Act of the Code of Virginia related to health insurance, coverage for prescription and non-prescription opioid antagonists. Legislation reported by the Committee on Labor and Commerce with an amendment of nature substitutes. Subject reported by the Committee on Appropriations. The Delegate from Wilden, Delegate Reeser.

[02:10:08] Thank you, Madam Speaker. I move the committee substitute. Shall the substitute be agreed to? All those in favor, say aye. Those opposed, no. Substitutes agree to, Delegate Reeser. - Thank you, Madam Speaker. HB 795 removes barriers to life-saving opioid antagonists by eliminating prior authorizations and step therapy requirements.

[02:10:29] I move the bill be engrossed and passed to its third read. - Next up in the block, House Bill 849, legislation to amend and reenact sections of Dakota, Virginia relating to public school of employees, suspension, notice, and opportunity for a hearing. Legislation is reported to the Committee on Education.

[02:10:45] - The Delegate from Richmond, Delegate Cousins. Thank you Madam Speaker. HB 849 closes a loophole in the law that allows teachers and school employees to be suspended without pay for up to five days with no ability to contest the suspension.

[02:11:01] What this bill does is restore the right of teachers and school employees to defend themselves before pay is withheld by stating that any teacher or school employee who is suspended without pay except where the safety or welfare of the school division is threatened or where the teacher or school employee has been charged with the crimes listed in this section has a right to petition the school board for a hearing regardless of the length of suspension and to continue to receive pay unless or until the applicable school board determines otherwise.

[02:11:31] This bill does not limit the authority of a school board to dismiss or place a teacher or school employee on probation, nor does it prohibit a school division from placing an employee on administrative leave with pay. Madam Speaker, I move that the bill be engrossed and passed to its third reading.

[02:11:47] Continuing with the uncontested block, House Bill 865 has different legislation to amend and reenact, this time the Code of Virginia relating to workers' compensation, presumption of compensability for certain cancers. Legislature reported by the Committee on Labor and Commerce with amendments and then subsequent report by the Committee on Appropriations.

[02:12:06] The delegate from Richmond, Delegate Cousins. Thank you, Madam Speaker. HB 865 adds lung cancer and non-Hodgkins lymphoma to the list of presumptive conditions covered under workers' compensation for Virginia's firefighters. Occupational cancer is the number one cause of death among firefighters, and adding coverage for these cancers ensures that we can further protect Virginia's firefighters and their families. Madam Speaker, I move that the bill be engrossed, and well, before I do that, I would like to move the committee amendments. Shall the the amendments be agreed to. All those in favor say aye. Those opposed no. All right, the amendments

[02:12:42] are agreed to. Thank you. Madam Speaker, I move that the bill will be engrossed and passed to its third reading. Continuing with the block, we come to House Bill 885, Legislation Amendment and Reign Act, Section of the Code of Virginia, relating to court date reminder program established. Legislation reporting committee for courts of justice with a substitute and then substitute reported by the Committee on Appropriations. The delegate from Arlington, Delegate Hope. Thank you, Madam Speaker. I

move the committee substitute. Shall the substitute be agreed to? All those in favor say aye. Aye. Those opposed, no. The necessities agree to. Delegate Hope. Thank you, Madam Speaker. Members of the body, this legislation established a statewide court text reminder program to send automated text message reminders to anyone facing a criminal

[02:13:19] charge. It will improve appearance races and will improve our court efficiency, reduce abortive Gerald emissions, driver's license suspensions, and other collateral consequences of missing court. I want to thank my colleague from Loudon Delegate Reed for supporting this effort so strongly and vigorously in the Appropriations Committee. I hope it would be a pleasure to all, I hope it would be a pleasure to the body to engross the bill and pass it on to its third degree.

[02:13:42] Next up in the blog, House Bill 957 is legislation to amend Dakota, Virginia, relating to the Department of Education, anonymous student bullying tip line established. Legislation report committee on education with amendment nature substitute. The delegate from Prince William, Delegate Guzman. Thank you, Madam Speaker. I would like to move the committee substitute.

[02:14:00] Shall the substitute be agreed to? All those in favor say aye. Those opposed, no. says it's agreed to delegate guzman thank you madam speaker house bill 957 requires the department of education to direct each school board to encourage each public elementary and secondary school in the local division to promote or utilize the 988 suicide and crisis lifeline to address student bullying and cyber bullying i hope it's the will of this body to engross this bill and pass it into its third reading next up we come to uh house bill 1142 which is legislation to amend and

[02:14:39] and Reign Act, sections of the code of Virginia relating to deferred or installment payment agreements, outstanding court-assessed fines, fees, taxes, or costs. Legislators report a committee on public safety with the substitute, and it was subsequently reported by the Committee on Appropriations with amendments drawn to that substitute. The delegate from Colonial Heights, Delegate Cherry. Thank you, Madam Speaker. I move the substitute from the Public Safety Committee.

[02:14:59] Shall the substitute be agreed to? All those in favor say aye. Aye. Those opposed, no. Substitutes agree to. Delegate Cherry. I also move the amendment from the Appropriations Committee. Shall the amendment be agreed to? All those in favor say aye. Aye. Those opposed, no. The amendment is agreed to. Delegate Cherry. Thank you, Madam Speaker. Madam Speaker, House Bill 1142 closes a gap in the Code of Virginia by allowing formerly incarcerated individuals 180 days before fines and penalties are added to their charges of their restitution fines and fees. While not forgiving their debt, it ensures that it is paid and the grace period allows for a smoother transition to freedom upon release from incarceration. I ask that we would

[02:15:38] engross the bill and move it to its third reading. Over on page 30, we come to House Bill 1284, Legislation Demand to Rean Access Code of Virginia relating to the Department of Medical Assistance Services, State Plan for Medical Assistance, Patient-Initiated Consultation, Provider-to-Provider Consultation. Legislation Report Committee on Health and Human Services with the Substitute. Substitute reported by the Committee on Approves. The Delegate from York, Delegate Downey. Thank you, Madam Speaker. First, I move the Committee Substitute. Shall the Substitute be agreed to.

[02:16:04] All those in favor say aye. Aye. Those opposed, no. Substitute's agreed to. We'll get Downey. Madam Speaker, House Bill 1284 is a bill to allow medical providers to be reimbursed for time spent

consulting other medical providers, usually specialists, regarding patient care through electronic medical records via e-consults.

[02:16:23] Studies have shown that e-consults significantly reduce referrals for specialty visits while maintaining appropriate care with their primary care provider and their medical home. This results in saving patients time and money, especially in areas that are underserved by specialists, and reducing overall health care costs.

[02:16:39] I'd also like to thank Delegate Laufer for doing work on this bill as well, and I hope it is the will of this body to engross the bill and pass it on to its third reading. Next up in the block is House Bill 1357. House Bill 1357 would direct the Department for Aging and Rehabilitative Services to convene a work group for the purpose of conducting a comprehensive study of the quality of care, resident safety, and operational practices of nursing facilities in the Commonwealth.

[02:17:07] For legislation report, Committee on Health and Human Services, subsequently reported by the Committee on Appropriations with Amendment Nature Substitute. The delegate from Richmond City, Delegate McQuinn. Madam Speaker, Madam Speaker, HB 1357 proposes meaningful reforms to improve oversight accountability, staffing, and quality of care of Virginia's nursing home.

[02:17:33] The bill aims to ensure facilities are held to a higher standard and that there is a greater transparency for families and regulators. I hope it would be the will of the body to engross the bill and move it on to its third reading. The questions on the committee shall the substitute be agreed to?

[02:17:50] I apologize. Aye. Those opposed, no. Substitute's adopted. That's you. Madam Speaker, we come to House Bill 1472, which is legislation for the relief of Messiah Alinar Johnson relating to claims, compensation for wrongful incarceration, legislation reporting on appropriations.

[02:18:14] All right, the delegate from Fairfax, Delegate Sullivan. Thank you, Madam Speaker. I know we're in the uncontested docket, and I'm grateful for that, but I'd like to slow this train down just a little bit, spend a moment talking about this important bill. Members who've been here a while know that I've done, I think, north of a dozen of these sorts of bills, because not often, but too often, Madam Speaker, we get it wrong, and we convict people of crimes that they did not commit.

[02:18:40] H.P. 1472 deals with the case of Messiah Johnson, who in 1998 was sentenced to 132 years in prison for a beauty salon robbery he did not commit. Mr. Johnson served nearly 20 years in prison before Governor McAuliffe in 2018 granted him a conditional pardon.

[02:19:01] The pardon was based on the fact that credible evidence existed that supported Mr. Johnson's claims of being innocent. Mr. Johnson satisfied the conditions of the pardon and in 2021 was released on supervision. Since his release, Mr. Johnson has made every effort to be exonerated and clear his record and his name.

[02:19:24] He petitioned the Court of Appeals of Virginia for a writ of actual innocence. And last year, the court ruled that Mr. Johnson no longer stood convicted of the offenses at issue. The court held Johnson now stands absolutely pardoned of the offenses for which he seeks actual innocence relief.

[02:19:40] Madam Speaker, Mr. Johnson's petition for rid of actual innocence was based on a confession by an alternate suspect. That means that somebody who was already in prison for doing something very similar confessed to have committed the crime for which Mr. Johnson was convicted.

[02:19:56] There was also later discovered internal notes revealing that the Norfolk Police Department believed a primary witness's identification to be too suggestive to be usable, but they used it anyway. Madam Speaker, Mr. Johnson's wrongful conviction was a miscarriage of justice, the product of a shoddy investigation, police and prosecutorial misconduct, and mistaken and unreliable witness identifications.

[02:20:24] Knowing he was innocent, Mr. Johnson turned down a three-year plea offer and took his case to trial. Not surprisingly, the Commonwealth presented no physical or forensic evidence of his commission of the crime.

[02:20:42] And Mr. Johnson, in fact, offered an alibi supported by multiple witnesses. Madam Speaker, Mr. Messiah Johnson has fought for nearly 30 years to clear his name. We cannot right that wrong with this action.

[02:20:59] But this is the process we have crafted here in the General Assembly to compensate people like Mr. Johnson. Today, this is the first step to allow Mr. Johnson to finally and absolutely clear his name, to further his career, to reclaim and rebuild his life, and to seek all appropriate redress for his wrongful conviction.

[02:21:24] I hope it will be the will of the body to engross the bill and pass it on to its third reading. Shall the bills be engrossed and passed to its third reading? All those in favor say aye. All those opposed, no. The bills are engrossed and passed to its third reading.

[02:21:41] Mr. Speaker, members of the House, we come to a new category. House Bill is on second reading regular. House Bill second reading regular, middle of page 31, House Bill 524 is by for the day. Therefore, the first bill in this new category is House Bill 5. It's amended and reenacted to the Code of Virginia related to employment, paid sick leave, civil penalties. Legislation originally reported for the Committee on Labor and Commerce with amendments and then subsequently was reported by the Committee on Appropriations.

[02:22:13] Delegate from Virginia Beach, Delegate Converse Fowler. Thank you, Mr. Speaker. First, I'd like to move the committee amendments. Shall the committee amendment be agreed to? All those in favor, say aye. All those opposed, no. The committee amendment is agreed to. Thank you, Mr. Speaker. Mr. Speaker, HB 5 ensures that all employees have the right to earn at least five paid sick leaves per calendar year.

[02:22:33] Mr. Speaker, paid sick leave not only benefits workers, but also businesses. So let me be clear. Sick workers cost more than sick leave. It enhances worker retention with better benefit guarantees and strengthens worker protections by helping prevent the spread of transmissible diseases to keep the workforce healthy.

[02:22:54] Mr. Speaker, these protections for the workers that are truly Virginia's backbone are long overdue. I hope that it is the will of the body to engross the bill and pass it on to its third rating. Delegate from Patrick County, Delegate Williams. Mr. Speaker, I was curious if the patron would yield for a question. Would the patron yield for a question?

[02:23:09] I will not. The patron will not yield. Mr. Speaker, speaking to the bill. Delegate has the floor. Mr. Speaker, that's twice somebody's not answered my question on the House floor, but I guess that's okay. I'll say what I was going to say anyway. What I was going to ask, had the delegate read the fiscal impact statement published by the Department of Planning and Budget on January 27th at 1125 a.m.?

[02:23:31] And if so, could she tell the body where the $26 million in year one is coming from and why the program costs to grow to $34 million by year four? So, Mr. Speaker, I was going to thank the delegate for her remarks, but I guess I'll skip that section. Let me walk the body through what this bill actually costs, because I think every member deserves to know what they're actually voting on.

[02:23:53] First, DMAS, which is the Department of Medical Assistance Services, in year one, Medicaid will top $11 million from our general fund. Now, I'm not sure you guys know where our money from our general fund comes from, but that comes from our taxpayers' dollars.

[02:24:10] Okay, so when I say general fund, those are money that came out of our taxpayers' pockets, okay? Another $12.4 million comes from non-general funds. Now, non-general funds are money that comes out of taxpayers' pockets, including federal dollars, like our federal taxes.

[02:24:28] That's $23.4 million in year one just for Medicaid. Now, this has a $26 million in year one fiscal impact request. So 23.4 is just going to Medicaid. Now, what does Medicaid pay for?

[02:24:44] Well, they pay for paid sick medical leave for home health care workers. So why do we need $23 million to pay for paid sick leave to Medicaid? Because Medicaid reimburses our home health care workers.

[02:25:02] So when you mandate paid sick leave for those health care workers, the cost of employing them goes up, and the agency can't absorb it, so their revenue comes from Medicaid rates. Medicaid has to raise the reimbursement rates to cover this new benefit.

[02:25:19] That's what the $23.4 million is paying for. It's not paying for medical leave for teachers. It's not paying for medical leave for law enforcement officers. This is being sold to the public as you're going to get free medical leave. But all of the money, other than the ones that is being appropriated from our tax dollars, is coming straight out of our employer and our employees' pockets.

[02:25:43] And so if you're going to have another non-general fund of $12.4 million, that is going to come out of the federal matching dollars. So this is going to be an incredibly impactful bill, and it continues to grow.

[02:25:59] year after year at an indeterminate amount that's actually stated in the fiscal impact statement quote it is also anticipated that this bill will result in an independent general fund revenue impact you know why because when you go and look in it it's going to require 14 new state positions to enforce it that's another 2.1 million a year in personnel cost every year from the general fund And obviously, that'll grow, especially when you guys keep raising minimum wage.

[02:26:29] On top of that, Dolly needs to build a brand new IT system just to track everything. That's another million dollars. So Dolly in the first year is going to be $3.1 million, and then another $2.15 million every year in perpetuity after that. So let's add all that up.

[02:26:45] That is year one, $26.6 million. Year two, $29.8 million. Year three, $32.1 million. Year four, $34.3 million. That's over $122 million in the first four years alone. That's general fund federal Medicaid tax dollars and non-general funds.

[02:27:02] To put that in perspective, my county's annual budget is roughly $74 million. So these costs don't even level up. They keep going, and the department doesn't even know by how much. So we are committing taxpayers up to a partially funded program that costs well over $25 million and rising, and

nearly $22 million is going to Medicaid costs alone, while you guys are freaking out that they're going to cut every single dollar from Medicaid coming from the federal government.

[02:27:35] So how are you going to backfill this program if they cut that money? So, Mr. Speaker, everything I've just described is only the cost to the Commonwealth as an employer. It does not include a single dollar of the cost this mandate on the Virginia private employers, the small businesses, the restaurant, the family farms, because that number, Mr. Speaker, was never calculated. It hasn't been presented today. This is going to be $23 million specifically for Medicaid costs, Mr. Speaker. Thank you. Should a bill be engrossed and passed the third rate?

[02:28:13] Now those in favor say aye. Those opposed, no. The bill's engrossed and passed the third rate. House Bill 28, now before you seek to amend and reenact Section Dakota-Virginia related to voter registration. Regular periodic review of registration records, 90-day quiet period before all primary and general elections.

[02:28:29] Legislation report committing on privileges in elections with amendment nature, substitute and substitute report by the Committee on Appropriations. From Prince William, delegate hints. Thank you, Mr. Speaker. Mr. Speaker, I move the committee substitute. Shall the committee substitute be agreed to? All those in favor say aye. Those opposed, no. Committee substituted agreed to. Thank you, Mr. Speaker.

[02:28:45] Mr. Speaker, the clerk explained my bill very well. I move for it to be engrossed and passed to his third reading. Shall the bill be engrossed and passed to his third reading? All those in favor say aye. Those opposed, no. The bill's engrossed and passed to his third reading. House Bill 125. This is legislation that seeks to amend and reenact the Code of Virginia relating to public elementary and secondary schools, teachers, terms of employment, re-employment of teacher who has not received continuing contract status, written notice required. Legislation was reported to the Committee on Education.

[02:29:13] Delegate from Lyon County, Delegate Risa. Thank you, Mr. Speaker. Mr. Speaker, this bill ensures that tenured teachers' due process rights may not be circumvented. What this bill does not do is change dismissal powers. It maintains the ability of school districts to dismiss teachers through proper procedures.

[02:29:30] I move the bill to be engrossed and pass to its third reading. Shall the bill be engrossed and pass to its third reading? All those in favor say aye. Those opposed, no. The bill is engrossed in third reading. Over on page 34, we come to House Bill 127. This is legislation to amend and reenact two sections of the code of Virginia relating to court appearance of a person not free on bail.

[02:29:47] Legislation report a committee on the courts of justice with a substitute, subsequently recorded from the committee on appropriation with amendments drawn to that substitute. Delegate from Albemarle, Delegate Coulson. Thank you, Mr. Speaker. Mr. Speaker, I move the Courts of Justice Committee substitute. Shall the Committee substitute be agreed to?

[02:30:03] All those in favor say aye. All those opposed, no. The Committee substitute is agreed to. Thank you. Mr. Speaker, I move the Appropriations Committee amendment. Shall the Committee amendment be agreed to? All those in favor say aye. All those opposed, no. The Committee amendment is agreed to. Thank you, Mr. Speaker. House Bill 127 provides counsel at first appearance to indigent defendants in jurisdictions with a public defender's office.

[02:30:24] The work on this bill began well before my time in the last decade, and the version you see today is the culmination of years of dedication and good faith compromise that got us to a place where over a dozen organizations spoke up in support and nobody opposed. And if you know courts, let me tell you that's saying something.

[02:30:42] The hope is that its passage will provide counsel to defendants earlier in the judicial process, improving court efficiency, and getting to more accurate pre-trial decision-making earlier in the legal process. I ask that it be the will of the body to engross the bill and pass it to its third reading. Shall the bill be engrossed and pass the third reading?

[02:30:59] All those in favor say aye. All those opposed, no. The bill is engrossed and passed the third reading. Next up, we come to House Bill 189, which is legislation to amend and reenact Section of the Code of Virginia relating to certain student assessment requirements, calculation of final course grade repeal.

[02:31:16] Legislation report committee on education with an amendment. Delegate from Virginia Beach, Delegate Commerce Fowler. Thank you, Mr. Speaker. Mr. Speaker, I'd like to move the amendment. Shall the committee amendment be agreed to? All those in favor, say aye. All those opposed, no. The committee amendment is agreed to. Thank you, Mr. Speaker. Mr. Speaker, HB 189 aims to simply repeal the requirement that students' performance on SOL tests count at least 10% of their final grade.

[02:31:38] Mr. Speaker, as an educator, I know how difficult testing can be for our students and for a number of reasons. And instituting a grade requirement on these end-of-the-year tests does not foster real learning. The grade requirement serves to force teachers to teach to the test rather than understanding the material and heightens testing anxiety that many of our young Virginians already face.

[02:31:59] Mr. Speaker, I hope it is the will of the body to engross the bill and pass it on to its third reading. Shall the bill be engrossed and passed the third reading? All those in favor, say aye. All those opposed, no. The bill is engrossed and passed the third reading. House Bill 247 now before you would cease to amend and reenact the Code of Virginia relating to deferred disposition in a criminal case, persons with autism or intellectual disabilities, expungement.

[02:32:21] Legislation report, Committee of Courts of Justice, with amendments, subsequently reported by the Committee on Appropriations. Delegate from Fairfax, Delegate Watts. Thank you, Mr. Speaker. I move the Courts of Justice Committee amendments. Shall the Committee amendment be agreed to? All those in favor, say aye. All those opposed, no. The Committee amendment is agreed to.

[02:32:37] Thank you, Mr. Speaker. House Bill 246, let me start by saying, makes absolutely no change in the felony penalty for assaulting a law enforcement officer. What it does do is that when that may occur, particularly during a crisis situation, and the individual may have had dementia, Alzheimer's, autism, mental health disorder, all of these conditions may have led to the reason why there was contact with the officer.

[02:33:16] What 246 allows then is with 60 days notice to the Commonwealth Attorney that this evidence might be brought forward that would indicate the action that if it is found by a predominance of the evidence, that the charge then could be reduced to misdemeanor assault and battery so that the individual does not carry that long record of a felony charge.

[02:33:46] I hope it will be the pleasure of the body to engross the bill. Pass it on to its third reading. Shall the bill be engrossed and passed the third reading? All those in favor say aye. All those opposed, no. The

bill is engrossed and passed the third reading. House Bill 293, before you now, seeks to amend and reenact, excuse me, just seeks to amend a portion of the Code of Virginia relating to corporations, limited liability, decentralized autonomous organizations, legislation reported from the Committee on Communication, Sectionality Innovation with Amendment Nature Substitute.

[02:34:12] Delegate from Fairfax, Delegate Helmer. Thank you, Mr. Speaker. Mr. Speaker, I move the committee substitute. Shall the committee substitute be agreed to? All those in favor say aye. Aye. All those opposed, no. The committee substitute is agreed to. Thank you, Mr. Speaker. With the substitute, the Limited Liability Distributed Autonomous Organization Act creates new mechanisms to register LLDs in the Commonwealth of Virginia while aligning that largely with LLC code.

[02:34:38] The amendments offered by the committee largely align the code for LLDs in terms of its protections, consumer protections, how things are registered, the priority of blockchain versus smart contracts versus articles of an organization with the LLC code, and allows the SEC to oversee those in the same way they do LLCs.

[02:34:58] I hope as well the body to engross this bill and pass it on to its third reading. Shall the bill be engrossed and pass the third reading? All those in favor, say aye. All those opposed, no. The bill's engrossed and passed the third reading. House Bill 470 now before you would direct the Department of Medical Assistance Services to submit state plan amendments to the Centers for Medicare and Medicaid Services to seek to modify the program rules for consumer-directed services available through certain Medicaid waivers. Legislation Bridge Report Committee on Health and Human Services, followed by Committee on Appropriations. Delegate from Fairfax, Delegate Cohen. Thank you, Mr. Speaker. House Bill 470 allows individuals receiving consumer-directed Medicaid services to serve as their own employer

[02:35:36] of record and designate another person to help manage employer duties when needed it also sets rules for assigning employer identification numbers and allows the department to limit how often these designations can change each year i hope is the will of the body to engross and pass to its third reading shall the bill be engrossed and passed the third reading all those in favor say aye all those opposed no the bill's engrossed and passed the third reading uh now before you is house bill 478 which seeks to amend and reenact a portion of the code of virginia related relating two, Diploma Seal for Excellence in Fine Arts established, an industry-recognized workforce credential.

[02:36:09] Legislation reporting on education. Delegate for Fairfax. Delegate Watts. Delegate Watts: Thank you, Mr. Speaker. As described by the clerk, this allows the board to establish criteria for awarding a Diploma and Seal for Excellence in Fine Arts, which can include a sequence of coursework and cumulative grade point average, as well as additional performance-based criteria.

[02:36:32] I hope it will be the pleasure of the body to engross the bill and pass it on to its third reading. Shall the bill be engrossed and pass the third reading? All those in favor say aye. All those opposed, no. The bill is engrossed and passed the third reading. Over on page 38, we come to House Bill 483. Legislation amended and reenacted in Dakota, Virginia, relating to the Prescription Drug Affordability Board established, Drug Cost Affordability Review.

[02:36:53] Legislation originally reported to the Committee on Labor and Commerce with amendments absolutely reported by the Committee on Appropriations. Delegate from Fairfax, Delegate Delaney. Thank you, Mr. Speaker. I move the Committee amendments. Shall the committee be agreed to? All those in favor, say aye. Aye. All those opposed, no. The committee amendment is agreed to. Thank you, Mr.

Speaker. House Bill 483, otherwise known as the Affordable Medicine Act, establishes a Prescription Drug Affordability Review Board to rein in out-of-control prescription drug prices for all Virginians.

[02:37:20] This bill establishes a board of unbiased experts to meet multiple times annually and analyze specific prescription drug prices in the Commonwealth that have seen absurd, unexplained price hikes. The board would evaluate these hikes and institute an upper price limit to keep prices affordable for Virginians.

[02:37:36] This process is crucial to ensuring Virginians have access to affordable prescription medications that they rely on to survive. It builds upon existing federal policy and protects citizens from choosing between everyday expenses such as rent and the medicines that keep them alive. I hope it is the will of the body to engross this bill and move it to its third reading.

[02:37:56] From Middlesex, Delegate Hodges. Thank you, Mr. Speaker. Will the delegate yield for a question? Will the delegate yield for a question? I yield. Delegate will yield. Thank you, Mr. Speaker. I was wondering if the delegate can identify a state where a Prescription Drug Affordability Board has produced measurable, sustained reductions in prescription drug costs.

[02:38:14] And I would answer the delegate to say that we have looked at the several states that have implemented versions of Prescription Drug Affordability Boards, and we have learned from where they have gone right and where they have gone wrong. We've been able to point to some of the criticism of this board has been that it's been ineffective in other states, and we've been able to point to why that is and correct for that by aligning our language with instead the IRA coming out of the federal government and aligning our board to model those prescription drug prices that have already been proven to work at the federal level.

[02:38:43] But I will say that Colorado is probably the board that is the farthest ahead, and they are starting to implement their first upper price limit. They will have some data soon, but I will conclude, Mr. Speaker, by saying that Virginia is not following what other states are doing. Virginia is learning from what other states are doing and hopefully doing it better.

[02:39:04] And the delegate yield for another question, Mr. Speaker? Will the delegate yield for another question? I yield. Having mentioned Colorado being the farthest along, can the delegate tell me how many drugs have actually been given an upper payment limit?

[02:39:24] Mr. Speaker, I'd answer the delegate. I believe that they are just implementing their first upper price limit. Where we are different, however, so that's the answer technically to the question, but as it relates to this bill, we're looking to align our prices with the 25 drugs that have already had price limits set by the Inflation Reduction Act.

[02:39:42] And we are modeling ours to mirror that federal policy, which has already gone to effect that Americans are already enjoying at the federal level and applying that to our practice here in Virginia so that Virginians can see those same price reliefs, relief that has already happened at the federal level and has been proven there.

[02:39:58] And will the delegate yield for one final question, Mr. Speaker? Will the delegate yield for one final question? One final question, Mr. Speaker, I will yield. Thank you, Mr. Speaker. Can the delegate tell us when a federal, well, no, when a federal, when an upper payment limit is established, where does that fall on the bottom line and who ends up paying for that cost?

[02:40:23] Mr. Speaker, I'll answer the question that the supply chain of our prescription drug prices is, in fact, complex. And the delegate and I, I know, agree that there are many points along the way that we need to find the ability to target and really precisely address why are at these certain points of our supply chain are we seeing these price hikes occur.

[02:40:42] So the board will, and I will note for I hope the delegates comfort in the objections to this bill, we are continuing to work with stakeholders and the administration. I expect we will see some continued work on language in this bill that will get us to that precise ability for this board to have the authority to really examine the entire supply chain and pinpoint where those problems occur so that we can follow up and address those precisely.

[02:41:07] But I will say where the final price will not impact is the bottom line of Virginians because the bill does write in that the cost should not be borne on the patient. And so somewhere along the supply chain, we'll have the ability to rein in those costs, but the bill does include language to ensure that those costs are not going to impact the bottom line for the payer for the Virginian.

[02:41:31] Delegate for Middlesex, Delegate Hodges. Thank you, Mr. Speaker. I thank the delegate and would like to speak to the bill, please. The delegate has the floor. Thank you, Mr. Speaker. I applaud the delegate for trying to bring something forward to lower prescription drug prices in the Commonwealth. And actually, everyone in this body would like to see that happen.

[02:41:49] But I will say the piece of legislation we have before us is highly flawed. And it's primarily because drug costs are not addressed in this legislation with the practices of the pharmacy benefit managers and the ones that actually are responsible for the high drug costs.

[02:42:13] And when we talk about the upper payment limit, it sets an upper payment limit. That actually is the payment limit that the pharmacy actually receives from the PBM. So they're the ones that are actually eating the cost here, because we cannot force manufacturers to change their costs.

[02:42:29] And when you look at other states, Mr. Speaker, we have Colorado, we have Maryland, we have Washington State, and many others. And when you look at Colorado, after years of work, spending initially $730,000 on it, and now upwards of $2 million on the program, finally, only one upper payment limit has been established.

[02:42:54] And then you look at Maryland, the first state to establish a PDAB. In 2019, Maryland has spent $3.2 million on the board with annual appropriations of at least $1 million for the PDAB fund starting in fiscal year 2025.

[02:43:12] And the fiscal impact here in Virginia is roughly, I believe, around $1 million or $1.1 million, somewhere in that neighborhood, anywhere between $895,000 to almost $1.2 million. them. So taxpayers will be the ones that will be bearing these costs. And taxpayers deserve to have something back on their investment and deserve to have lower drug prices with that investment, Mr. Speaker. And this bill does not do that. So I urge everyone in the body to please vote no.

[02:43:45] Shall the bill be engrossed and passed the third reading? All those in favor say aye. All those opposed, no. The bill is engrossed and passed the third reading. Over on page 39, we come to House Bill 494. This is legislation to amend the Code of Virginia relating to the Virginia Personnel Act, hiring preference in state government certain former federal employees.

[02:44:05] Legislation originally was reported on general laws with a substitute, subsequently reported on the committee on appropriations with a different substitute, and the bill's patron has a floor amendment drawn to the appropriation substitute. Delegate from Prince William, Delegate Guzman. Thank you, Mr. Speaker.

[02:44:21] I would like first to move the General Laws Committee substitute and ask this body to reject that substitute. Shall the General Laws Committee substitute be agreed to? All those in favor say aye. All those opposed, no. No. General Laws substitute is rejected.

[02:44:37] The delegate from Prince William, Delegate Guzman. Thank you, Mr. Speaker. I would like to move now the Appropriations Committee substitute and ask this to vote yes on the Appropriations Committee substitute. - So the Appropriations Committee substitute be agreed to. All those in favor say aye. All those opposed, no.

[02:44:52] The Appropriations Committee substitute is agreed to. - Thank you, Mr. Speaker. And finally, I would like to move floor amendments. - Got a lot going on. Clerk will report the floor-- - Floor amendment offered by Dolly Guzman is available to members via IHOD to the public on legislative information system services is now before you.

[02:45:12] - That is for Prince William, Dolly Guzman. - Thank you, Mr. Speaker. As the Florida Amendment changes technical language around eligibility for the hiring preference requested by the Office of the Attorney General, House Bill 494 aims to address the federal job cuts resulting by establishing a hiring preference in a state government for Virginians who were terminated from federal employment on or after January 1st, 2025.

[02:45:38] The bill will keep skilled and experienced workers in Virginians, stabilize tax revenues and benefit businesses. I would ask this body to engross this bill and pass this bill into its third reading. Shall the floor amendments be agreed to? All those in favor say aye.

[02:45:54] All those opposed, no. The floor amendments are agreed to. Shall the bill be engrossed and passed the third reading? All those in favor say aye. All those opposed, no. The bill's engrossed and passed the third reading. Excuse me. House Bill 592, now before you, seeks to amend the Code of Virginia or Lane into Public Schools Wearable Panic Alarm Systems Grant Program.

[02:46:12] Legislation originally reported, Committee on Education subsequently reported by the Committee on Appropriations with the substitute. The delegate from Newport News, Delegate Simons. Thank you, Mr. Speaker. Mr. Speaker, I move the committee substitute. Shall the committee substitute be agreed to? All those in favor say aye. Aye. Those opposed, no. The committee substitute is agreed to.

[02:46:28] Mr. Speaker, HB592 is a permissive bill, also known as Alyssa's Law, that allows school divisions to provide wearable panic alarm systems to school staff. These alarms are simple, discrete tool that can instantly alert 9-1-1 and initiate a school-wide emergency response during a security crisis. I hope it will be the will of the body to engross the bill and pass it on to its third reading. Shall the bill be engrossed and pass the third reading? All those in favor say aye.

[02:46:54] All those opposed, no. The bill's engrossed and passed the third reading. Mr. Speaker, turning to page 40, we come to House Bill 670, legislation to amend and reenact the Section of the Code of Virginia relating to labor and employment provisions, application of law, protection of employees, definition of employer, legislation to report a committee on labor and commerce with amendments, and then

subsequently reported by the Committee on Appropriations, which offered a substitute amendment, nature substitute.

[02:47:21] Delegate from Prince William, Delegate Maldonado. Thank you, Mr. Speaker. Mr. Speaker, I move the Labor and Commerce Committee Amendment and ask that we reject that amendment. Shall the Labor and Commerce Committee Amendment be agreed to? All those in favor say aye. All those opposed, no. No. The committee amendment is rejected.

[02:47:39] The Delegate from Prince William, Delegate Maldonado. Thank you, Mr. Speaker. Mr. Speaker, I move that the appropriations substitute be adopted. Shall the Committee of Substitute be agreed to? All those in favor say aye. Those opposed, no. The Committee of Substitute is agreed to. Thank you, Mr. Speaker. Mr. Speaker, this is a clean-up bill, and it's brought back. It may look familiar.

[02:47:58] This is HB 670, and it ensures that when labor and employment laws are intended to apply to public employees, the Commonwealth, its agencies, and political subdivisions are included within the definition of employer. That means that even our schoolteachers whose planning periods, lunch periods, are filled and they're asked to teach will be properly compensated.

[02:48:20] Mr. Speaker, I move that the bill be engrossed and passed on to its third reading. Should the bill be engrossed and passed on to its third reading? All those in favor say aye. I was opposed. No, the bill is engrossed and passed the third reading. Next up, House Bill 797 is by for the day.

[02:48:37] Therefore, we come to House Bill 832. This is legislation to amend and reenact Section of the Code of Virginia relating to academic year governor's school's school meals. Legislation reporting from the Committee on Education with Amendment Nature Substitute. Delegate from Dinwiddie, Delegate Pope Adams.

[02:48:53] Thank you, Mr. Speaker. Mr. Speaker, I move that the House adopt the committee substitute. Shall the committee substitute be agreed to? All those in favor say aye. All those opposed, no. Committee substitute is agreed to. The delegate from Dinwiddie, Delegate Pope Adams. Thank you, Mr. Speaker. Mr. Speaker, we've seen bills about school meals, but HB 832 ensures that our governor's school students do not slip through the cracks.

[02:49:14] This bill directs the Department of Education to provide technical assistance to those governing boards to identify infrastructure needs, costs, and funding sources to ensure they maximize school meal offerings for those students they serve. Mr. Speaker, I hope it is the will of the body to engross this bill and pass it on to its third reading.

[02:49:33] Should a bill be engrossed and passed the third reading? All those in favor, say aye. All those opposed, no. The bill is engrossed and passed the third reading. Turning to page 42, we come to House Bill 833. This is legislation to amend the reenact section of the code relating to land subdivisions and development, optional provisions of a subdivision ordinance, electric vehicle charging stations, commission on electric utility regulation report.

[02:49:53] Legislation report committee on county, cities, and towns with amendments. That's what we reported by the committee on appropriations. Delegate from Arlington. Delegate McClure. Thank you, Mr. Speaker. Mr. Speaker, I move that the House adopt the committee amendment. Mr. Speaker, Mr. Speaker, sorry, but on the amendments. On the committee amendments?

[02:50:10] Yes, yes, Your Honor. The delegate from Scott County, Delegate Kilgore. Yes, Mr. Speaker. I would ask the Speaker if amendments 1, 2, 3, 4, 6, 10, and 11, where we insert the Department of Energy from where we change the name from the Commission on Electric Utility Regulation to the Department of Energy, Is that proper before the House since the bill died that changed the name to the Department of Energy?

[02:50:44] House be at ease. Rules that the matter is properly before the body, but good try trying to revive your bill.

[02:51:11] Mr. Speaker, I appreciate the gentleman's. Shall the committee amendment be agreed to? All those in favor, say aye. All those opposed, no. The committee amendment is agreed to. The delegate from Arlington, Delegate McClure. Mr. Speaker, I appreciate the gentleman for trying, although failing. Mr. Speaker, on to my bill.

[02:51:29] HB 833, as amended, would allow, not require, local governments to set minimum standards for EV charging and EV readiness in new building construction and major renovations in collaboration with builders, developers, and utility experts. New construction is the most cost-effective time to put electrical infrastructure in place, and according to builders, it costs next to nothing to do so.

[02:51:49] But Virginia law currently limits local governments from making those buildings EV ready, And this bill seeks to minimize electrical distribution infrastructure costs. Because charging is the most affordable at home, HB 833 would help more Virginians take advantage of these savings.

[02:52:05] Mr. Speaker, I move that the bill be engrossed and passed on to its third reading. Should the bill be engrossed and passed on to its third reading? All those in favor say aye. All those opposed, no. The bill is engrossed and passed the third reading. On page 44, we come to House Bill 852, legislation to amend and reenact section of the Code of Virginia relating to abolition of fees, legal representation of indigent defendant, jury trial costs.

[02:52:25] Legislation reported committing on courts of justice. Substitute reported committing on appropriations with the substitute. Delegate from Richmond, Delegate Cousins. Thank you. Mr. Speaker, I move adoption of the committee substitute. Shall the committee substitute be agreed to? All those in favor say aye. All those opposed, no. The committee substitute is agreed to. Thank you. HB 852 eliminates court-appointed attorney's fees and trial by jury costs for indigent defendants.

[02:52:46] These fees create unequal burdens for low-income communities and tie people down with a debt sentence, risking further entanglement with the criminal legal system. This bill has a reenactment clause which will give relevant stakeholders time to study this issue, offer recommendations, and report their initial findings to the Governor and General Assembly by November 1, 2026.

[02:53:10] Mr. Speaker, I move that the bill be engrossed and passed to its third reading. Shall the bill be engrossed and passed to its third reading? All those in favor say aye. All those opposed, no. The bill is engrossed and passed to its third reading. House Bill 955 seeks to amend and reenact sections of the Code of Virginia relating to the State Council of Higher Education for Virginia or SHV, Public Institutions of Higher Education, certain annual student demographic data. Legislation reporting on education with amendment nature substitute.

[02:53:34] Dr. from Prince William, Dr. Guzman. Thank you, Mr. Speaker. I would like to move that committee substitute. Shall the committee substitute be agreed to all those in favor say aye? All those

opposed, no. Committee substitute is agreed to. Thank you, Mr. Speaker. House Bill 955 directs the State Council of Higher Education for Virginia to report annually on the enrollment of Virginia students, non-Virginia students, and international students at each public institution of higher education in the Commonwealth.

[02:54:03] I hope it's the will of this body to engross this bill and pass it into its third reading. Shall the bill be engrossing past the third reading? All those in favor say aye. All those opposed, no. The bill is engrossing past the third reading. House Bill 996 now before you seeks to direct the Department of Aging and Rehabilitative Services in collaboration with the Department of Education to expand the Post-Secondary Education Rehabilitation Transition Program.

[02:54:26] Legislation reports on education with amendments. Delegate from Fairfax, Delegate Sebo. Thank you, Mr. Speaker. Mr. Speaker, I move the committee amendments. Shall the committee amendment be agreed to? All those in favor say aye. All those opposed, no. The committee amendment is agreed to. Thank you, Mr. Speaker. So, Mr. Speaker, for many students who graduate high school, it's an exciting time.

[02:54:43] But for students with disabilities and their families, it also can be very confusing and overwhelming. HB 996 strengthens and expands the Virginia's post-secondary education rehabilitation transition program so students aren't left to navigate this transition alone. It directs state agencies to create clear statewide guidance, better equip community service boards, and provides online tools.

[02:55:05] This bill ensures students that they won't fall through the cracks at the very moment we're asking them to step into adulthood. Mr. Speaker, I hope it is the will of the body to engross this bill and pass it on to the third reading. Shall the bill be engrossed and passed the third reading? All those in favor say aye. I was opposed. No, the bill is engrossed and passed the third reading.

[02:55:21] House Bill 1113, now before you, would require guidance and permit policies governing the provision of culturally responsive and language-appropriate mental health support and services. Legislation reporting for the Committee on Education, subsequently by the Committee on Appropriations.

[02:55:38] Delegate Mariko, Delegate Navar. Thank you Mr. Speaker. House Bill 1113 directs the Department of Education to develop guidance that local school boards may use to strengthen school-based mental health support. As student mental health needs continue to rise, this bill helps reduce barriers to care by ensuring services are accessible and effective for a range of student needs, including language and communication needs, family circumstances, and cultural differences, while keeping decision-making at the local level.

[02:56:10] Mr. Speaker, I ask that this bill be engrossed and passed on to its third reading. Shall the bill be engrossed and passed on to its third reading? All those in favor say aye. All those opposed, no. The bill is engrossed and passed on to its third reading. House Bill 1208 is legislation to amend and reenact the Code of Virginia relating to public education, early childhood care and education, child care access calculation report, legislation reporting on education with the amendment of the nature substitute.

[02:56:32] Delegate from Prince William. Delegate Sewell. Thank you, Mr. Speaker. Mr. Speaker, I move that the House adopt the committee substitute. Shall the committee substitute be agreed to? All those in favor say aye. As opposed, no. The committee's substitute is agreed to. Thank you, Mr. Speaker. House Bill

1208 establishes a child care access calculation, a standardized, transparent method for estimating the annual funding needed for the Commonwealth's early childhood care and education system.

[02:56:55] Currently, we lack a transparent and reliable way of determining the level of care funding needed from year to year. The child care access calculation incorporates three critical components needed to understand the true level of investment needed. One, the calculation predicts slots needed for program eligibility across the Commonwealth for public early childhood and education programs.

[02:57:16] Two, the calculation qualifies the per-child cost of delivering quality care access programs, age groups, and regions. And three, the calculation identifies additional slots needed to ensure supply keeps up with economic activity and workforce needs.

[02:57:31] Mr. Speaker, I move that the bill be engrossed and passed its third reading. Should the bill be engrossed and passed the third reading? None of those in favor say aye. All those opposed, no. The bill's engrossed and passed the third reading. House Bill 1278, now before you, is legislation that seeks to amend the Code of Virginia relating to standards of quality, school board policies, communication, and language accessibility for limited English proficient parents.

[02:57:58] Requirements report legislation reporting on education with amendments, and then subsequently it was reported from the Committee on Appropriations with an overall amendment in the nature of substitute. Doug from Loudoun County, Delegate Risa. Thank you, Mr. Speaker. I move the adoption of the Education Committee's amendment, and I request the members vote no.

[02:58:14] Shall the committee amendment be agreed to? All those in favor, say aye. All those opposed, no. No. Committee amendment is rejected. The delegate from Loudoun County, Delegate Risa. Thank you, Mr. Speaker. I move the Appropriations Committee substitute. Shall the Appropriations Committee substitute be agreed to? All those in favor, say aye.

[02:58:30] Aye. All those opposed, no. The committee substitute is agreed to. Delegate from Loudoun County, Delegate Risa. Thank you, Mr. Speaker. This bill codifies existing federal obligations that schools provide interpretation and translation for limited English proficiency parents so they can participate in decisions about their child's education in such things as IEP proceedings, discipline hearings and academic choices. This bill also requires school boards to post an adopted language plan. I move the bill be engrossed and passed to its third read.

[02:58:59] Shall the bill be engrossed and passed the third reading? All those in favor say aye. All those opposed no. The bill's engrossed and passed the third reading. Over on page 48, we come to House Bill 1367, different legislation, same patron. This legislation seeks to amend the Code of Virginia relating to the Department of Education, English, Language, Learner, Students, Expenditures, Data Collection Report.

[02:59:20] Legislation originally reported the Committee on Education, subsequent by the Committee on Appropriations, with an amendment. Delegate from Long Island County, Delegate Reece. Thank you, Mr. Speaker. I move the Appropriations Committee amendment. shall the committee amendment be agreed to all those in favor say aye aye all those opposed no the amendment is agreed to thank you mr speaker this bill requires the department of education to collect and share annual data on spending for english language learner students broken down by school grade and student proficiency level so the data can be used in making better expenditure decisions and to report it publicly to state leaders by november 1. i move the bill be engrossed

[02:59:54] and passed to its third reading and thank you for the flowers mr speaker she's going to make me kill a bill, huh? Should the bill be engrossed and passed the third reading? All those in favor say aye. All those opposed, no. The bill's engrossed and passed the third reading. And Ms. Peter, that completes that section of the calendar. We have one more category, resolutions, regular calendar. Resolutions, regular calendar, page 48. We come to House Joint Resolution 28.

[03:00:24] H.J.R. 28 establishes a joint subcommittee to study options for providing long-term care, sustainable, and dedicated operations and capital funding with cost containment controls to ensure that the public transit systems that serve Hempton Roads meet the growing public transit needs of the region.

[03:00:39] Report. Legislation report. Committee on Rules with amendments. And the bill's patron, Ms. Speaker, has floor amendments as well.

[03:00:59] I'm sorry. I'm sorry. Four amendments have been withdrawn. Delegate from Virginia Beach. Delegate, ask you. Thank you, Mr. Speaker. Mr. Speaker, I move to committee amendments. Shall the committee amendment be agreed to? All those in favor say aye. All those opposed, no. The committee amendment is agreed to.

[03:01:15] Thank you, Mr. Speaker. Speaking to the resolution, H.J. 28 creates a two-year joint subcommittee to study how to secure long-term, sustainable, and dedicated operations and capital funding for Hampton Roads Transient, including how costs are shared fairly across the cities and localities it deserves. I hope it's the will of the body to pass this resolution.

[03:01:32] Shall the resolution be agreed to? Recorded vote. Close the roll.

[03:01:50] Ayes, 92. Noes, 4. Ayes, 92. Noes, 4. The resolution is agreed to. Mr. Speaker, that completes today's calendar. Per House Rule 51, the House is returning to the morning hour. Does the clerk have any additional announcements or communications?

[03:02:07] I have the meeting scheduled to announce, Mr. Speaker. Let me do him. I'll do him. The delegate from Chesapeake, Delegate Hayes. Thank you, Mr. Speaker. Very quickly, I ask that we return back to the first morning hour.

[03:02:24] The delegate has the floor. Thank you, Mr. Speaker. Mr. Speaker, I rise for two motions and an introduction. Mr. Speaker, I ask that House Resolution 110 be called up out of order, and I move the adoption of that resolution. Delegate, the clerk will report a resolution. House Resolution No. 110, commending Emma Whitehead Hooper.

[03:02:43] All those in favor of adopting House Resolution No. 110 shall say aye. All those opposed, no. House Resolution 110 is agreed to. Thank you so much. Next up, Mr. Speaker, I ask that House Resolution 113 be called up out of order, and I move the adoption of this resolution. Clerk will report a resolution.

[03:02:58] House Resolution 113, commending Beatrice Black. All those in favor of adopting House Resolution 113 shall say aye. All those opposed no, House Resolution 113 is approved. Delegate for Chesapeake, Delegate Hayes. Thank you, Mr. Speaker.

[03:03:14] Mr. Speaker, I rise for the purpose of an introduction. Delegate still has the floor. Thank you, Mr. Speaker. Joining us today in the gallery, waiting patiently, we have the students and the staff from Goodwill Industries of the Valley's Excel Center of Roanoke, Virginia.

[03:03:29] The Excel Center is the first free public adult high school in the Commonwealth created by the General Assembly in 2023. I failed to ask them to please stand, but I see them standing, Mr. Speaker. They're funded by the Commonwealth in 2025.

[03:03:49] They were funded, and we are joined by two of the current 60 students as well as the Director of Community Impact. The Excel Center students, thank you for your support and this opportunity for Virginia residents to achieve a high-standard high school diploma at any age and being a career and beginning a career in today's competitive workforce.

[03:04:15] Please join me as we extend to them a warm house welcome.

[03:04:28] Mr. Clerk. Mr. Speaker, the meeting scheduled for this afternoon as we approach crossover next Tuesday, very long Monday ahead. But looking ahead just tomorrow, this afternoon and tomorrow morning, I'm not going to read any of the canceled meetings. We'll just talk about what is coming up.

[03:04:45] So a half hour after adjournment, approximately at 3.30, the General Laws Housing and Consumer Protection Subcommittee will be meeting. They'll be in House Committee Room B. Once that subcommittee of General Laws is finished, the full committee will meet and work through its docket. A half hour after adjournment, again, the Committee on Labor and Commerce, Subcommittee No. 2, They will be meeting in House Committee Room A and the lower level, then once that subcommittee is finished, then the full committee will take up its business.

[03:05:12] So general laws and labor and commerce will be meeting subcommittees before each one and then that. So those are the only two legislative meetings that I'm aware of for this afternoon. Looking ahead to tomorrow, we'll be going in a little bit earlier. Accordingly, there are just the three main committees that meet routinely on Fridays.

[03:05:34] The Committee on Public Safety will be meeting at 8 o'clock in House Committee Room A in the lower level. At 9 o'clock, the Committee on Privileges and Elections will be meeting. They'll be in House Committee Room C on the second floor. Also at 9 o'clock, the Committee on the County, Cities, and Towns, they'll be meeting, and that's in House Committee Room B on the second floor.

[03:05:57] So 1 at 8, 2 at 9. Committee on MEI Project Approval Commission, they'll be meeting at 9.30. And the Senate Appropriations, Finance Appropriations Group up on the 13th floor. And then the two caucuses will be meeting, the Democratic caucus will be meeting at 10, 15, Republican caucus at 10 a.m., Democrats in House Room 1, Republicans in House Room 2.

[03:06:20] Mr. Speaker, that's all the announcements that I'm aware of. Delegate from Alexandria, Delegate Herring. Mr. Speaker, I move that when the House adjourned today, adjourn to reconvene tomorrow at 11 a.m. Delegate from Alexandria, Delegate Herring moves up when the House adjourned today, adjourned to reconvene tomorrow at 11 a.m. As many in favor of the motion will say aye. Those opposed, no. The motion is agreed to. Delegate from Alexandria. Delegate Herring.

[03:06:40] Mr. Speaker, I move that the House do now adjourn. Delegate from Alexandria. Delegate Herring moves that the House do now adjourn. As men in favor of no motion, shall say aye. Aye. Those opposed, no. The motion is agreed to. The House does adjourn until tomorrow at 11 a.m.



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